

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 03/18/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-00633
CASE NAME: ELI HAZAN VS. VOLKSWAGEN GROUP OF AMERICA, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the Motion for Summary Judgment (MSJ) calendared for Line 8. If the MSJ is uncontested, then this CMC is continued to July 14, 2026 at 8:30 a.m.

2. 9:00 AM CASE NUMBER: MSC20-02307

CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP

HEARING ON ORDER TO SHOW CAUSE IN RE:

FILED BY:

TENTATIVE RULING:

The Court reviewed Plaintiff Linton McNeil's Declaration in Response to the Court's Order to Show cause. Defendant Kurita Jamison Pratt did not file a response. The parties are ordered to appear via Zoom or in person at 9:00 a.m. on March 18, 2026 in Department 16 for a Jury Trial Setting Conference.

3. 9:00 AM CASE NUMBER: C24-00146

CASE NAME: IFE RAMIREZ VS. ANNA HAYTER

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY ATTORNEY K.AGU SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR 9/22/2025 AND 1/22/2025 TO PROSECUTE THIS CASE

FILED BY:

TENTATIVE RULING:

Having reviewed the Declaration of Counsel Kenechi R. Agu in response to the Court's Order to Show Cause, the Court hereby **discharges** this OSC. No appearance is required at the March 18, 2026 hearing.

4. 9:00 AM CASE NUMBER: C22-01727

CASE NAME: ROBERT RODRIGUEZ VS. BARRET BURKETT

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY CASE SHOULD NOT BE DISMISSED FOR FAILURE TO APPEAR BY ROBERT D. RODRIGUEZ AT 1/16/2026 CMC.

FILED BY:

TENTATIVE RULING:

Having reviewed the Declaration of Robert D. Rodriguez in response to the Court's Order to Show Cause, the Court hereby **discharges** this OSC. No appearance is required in Department 16 on March 18, 2026 for this Order to Show Cause.

The Court notes that the parties are calendared for a hearing on a discovery motion before Commissioner Yamamoto at 10:30 a.m. in Department 57. Unless ordered otherwise by Commissioner Yamamoto, the parties are ordered to appear at the discovery motion at 10:30 a.m. in Department 57.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-01563

CASE NAME: CATHERINE ANGWIN GASCA VS. CITY OF BRENTWOOD

HEARING ON SUMMARY MOTION

FILED BY: CITY OF BRENTWOOD

TENTATIVE RULING:

Continued by the Court, *sua sponte*, to April 29, 2026. The Court has several documents from Plaintiff in opposing this motion, but it cannot find a copy of the opposition memorandum. It appears

that Plaintiff may have served an opposition memorandum, but failed to file it. Plaintiff shall file and serve their opposition memorandum, along with a proof of service showing when it was served on Defendant by March 25, 2026. The Court will consider Plaintiff's opposition memorandum if it was timely served on Defendant. No further briefing is needed. No appearance is required at the hearing on March 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: ENFORCE CROSS-DEFENDANT ROGER BOAZ'S COMPLIANCE WITH SETTLEMENT AND RELEASE AGREEMENT**

FILED BY: DOVE, BRYAN

TENTATIVE RULING:

Summary

Defendant and Cross-Complainant Bryan Dove's ("Dove") Motion to Enforce Cross-Defendant Roger Boaz's ("Boaz") Compliance with Settlement and Release Agreement is **granted** as set forth herein.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Dove and David Dove in Discovery Bay, California. Plaintiff alleged that Defendants served alcohol to minors. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

Dove contends that on October 9, 2025, the Parties attended mediation with mediator Chris Appleton. (Appleton Decl. ¶ 2.) As a result of the mediation, the Parties agreed to the following terms, which was articulated in writing following the mediation:

- (i) Mr. Dove's [insurance] carrier will pay Plaintiff a certain amount to resolve all claims or prospective claims against all persons including, but not limited to, Mr. Dove and Cross-Defendant;
- (ii) Plaintiff will dismiss with prejudice, any and all claims arising from the events of May

- 26, 2025, which are the subject of this matter;
- (iii) The cross-complaint from Mr. Dove against Cross-Defendant [Boaz] will be dismissed with prejudice, and any affirmative claims as set forth in Cross-Defendant's [Boaz] previously dismissed cross-complaint will be abandoned, and Cross-Defendant [Boaz] will withdraw his motion for leave to file first amended cross-complaint, which is currently set for hearing on November 5, 2025, in the Contra Costa County Superior Court;
 - (iv) Each party will bear their own costs and fees on the complaint and cross-complaints;
 - (v) Plaintiff will be required to satisfy any outstanding liens and bills from the settlement proceeds;
 - (vi) The settlement agreements will contain confidentiality provisions regarding the facts and circumstances giving rise to the claims and results of the Parties' negotiations. (Ibid., Ex. [emphasis added].)

Dove claims that on October 14, 2025, he sent an email to Boaz in an attempt to meet and confer regarding Boaz's failure to: (i) abandon the claims set forth in his cross-complaint, and (ii) and withdraw his motion for leave to file a first amended cross-complaint with prejudice. That same day, Boaz responded to counsel's email and represented that although he agreed to vacate his pending cross complaint, he did not agree to vacate the same with prejudice. (Harris Decl., ¶ 4, Ex. A.) Boaz also sent correspondence to Dove and to the mediator indicating that he wished to assert additional claims against Dove.

On November 26, 2025, Dove filed this Motion to Compel Compliance with the Parties' Settlement and Release Agreement. Dove also moves this Court for an order for monetary sanctions in the amount of \$2,400 against Boaz which reasonable attorney's fees for meeting and conferring with Boaz, and reviewing the files and records concerning this dispute, and subsequently having to bring this Motion. (See Harris Decl., ¶ 15.) This Motion is made pursuant to Code of Civil Procedure sections 128.5 and 664.6. This Motion is by a Notice, a Memorandum of Points and Authorities, the Declaration of Chris Appleton, and the Declaration of Xavier E Harris.

Boaz did not file a timely opposition to this Motion. On March 9, 2026, Dove filed a Notice of Non-Opposition.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117,

121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Did not Oppose this Motion

Under Cal. Code of Civ. Proc. §§ 1005(b), an opposition to a motion is due on or before nine (9) court days before the hearing. This hearing was calendared for March 18, 2026. Nine court days before March 18, 2026 is March 5, 2026. As of the date of this tentative ruling, no timely opposition was filed by Boaz.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].

Moreover, California courts recognize that a party’s failure to file a timely opposition is tantamount to a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues).

Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, held to standard of a practitioner before the court, the Court finds that Boaz's failure to file a timely opposition to this motion is deemed to his consent to the granting Dove's motion.

The Settlement Agreement is Enforceable under Section 664.6

Cal. Code of Civ. Proc. § 664.6(a) states:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Applied here, Boaz's own words and conduct are sufficient for the Court to enforce his obligations under the agreement, which again required him to withdraw his motion for leave to amend his first amended cross-complaint with prejudice and abandon his claims against Mr. Dove. Specifically, Boaz sent correspondence to the parties indicating that he intended to set aside the Court's ruling on November 12, 2025 because he "reasonably believed that the matter had been resolved through mediation and relied on written confirmation from the mediator." (Decl. of Xavier Harris, Ex. G). Exhibit I (Decl. of Xavier Harris) also contains an executed copy of the Confidential Settlement Agreement and Release, bearing Boaz's signature, dated November 12, 2025.

Based on the foregoing, the Court finds that the Parties entered into a settlement agreement on October 9, 2025 wherein Plaintiff has dismissed all claims against Dove and Boaz, and that Boaz and Dove have agreed to dismiss cross-complaints / cross-claims against each other, which was articulated in writing by the settlement mediator and confirmed in court on November 12, 2025.

Accordingly, the Court finds that Dove has proved, by a preponderance of the evidence, that such agreement, as articulated by the mediator, was accepted by Boaz, who agreed to dismiss his cross-complaint against Dove, with prejudice.

Sanctions

Under Cal. Code of Civ. Proc. § 128.5, "a trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." Here, Boaz's actions in refusing to cooperate with the settlement that he agreed to, and failing to oppose this motion to enforce the settlement agreement, lack any legal justification or merit. His refusal to cooperate with the settlement and delay are tactics made completely in bad faith and resulted in causing unnecessary delay.

After reviewing the moving papers, and applying the applicable statutory and decisional authorities, the Court finds good cause to grant this motion and the requested relief.

Ruling

1. Defendant and Cross-Complainant Bryan Dove's Motion to Enforce Cross-Defendant and

Cross-Complainant Roger Boaz's Compliance with Settlement and Release Agreement is **granted**.

2. Roger Boaz shall pay the amount of \$2,400 in attorney's fees to Bryan Dove, which the court finds reasonable, and was necessitated by filing this Motion, no later than ten (10) days from the date of this motion pursuant to Cal. Code of Civ. Proc § 128.5.
3. The Court finds that the settlement agreement entered into by the Parties on October 9, 2025 is valid and enforceable pursuant to Cal. Code of Civ. Proc § 664.6.
4. The Confidential Settlement Agreement and Release executed by Boaz is valid and enforceable pursuant to Cal. Code of Civ. Proc. § 664.6.
5. Pursuant to Cal. Code of Civ. Proc. § 664.6(a), the court **dismisses** this case without prejudice and retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. The Court also retains jurisdiction of over the parties to enforce payment of outstanding sanctions.
6. All motions, including the motions calendared for May 6, 2026 and August 12, 2026 are **vacated**, as this case is dismissed.
7. Dove's counsel is ordered to prepare and e-file a proposed order and judgment conforming to the foregoing ruling no later than ten (10) days from the date of the hearing of this motion, attaching a copy of the tentative ruling.
8. Plaintiff's Counsel is ordered to prepare a proposed judgment conforming to this ruling no later than twenty (20) days from the date of this ruling.

7. 9:00 AM CASE NUMBER: C24-00146

CASE NAME: IFE RAMIREZ VS. ANNA HAYTER

***HEARING ON MOTION IN RE: APPLICATION FOR DETERMINATION OF GOOD FAITH SETTLEMENT
FILED BY: HERNANDEZ, GERONIMO**

TENTATIVE RULING:

Defendant Geronimo Hernandez's Motion for Good Faith Settlement Determination, filed on November 17, 2025, is unopposed and, after independent review by the Court, it is **granted**. The Court will execute the proposed order lodged on November 17, 2025. No appearance is required at the hearing on March 18, 2026.

8. 9:00 AM CASE NUMBER: C24-00633

CASE NAME: ELI HAZAN VS. VOLKSWAGEN GROUP OF AMERICA, INC.

**HEARING ON SUMMARY MOTION FILED BY DEFENDANT
FILED BY: VOLKSWAGEN GROUP OF AMERICA, INC.**

TENTATIVE RULING:

The Court continues this hearing, *sua sponte*, to April 8, 2026 at 9:00 a.m. in this Department 16. No further briefings are required. No appearances is required at the hearing on March 18, 2026.

9. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by defendant Ramanujan Group LLC, as successor in interest to Blackhawk Centralcal LLC (“Defendant”), which challenges the first amended complaint (“FAC”) filed by plaintiff Kiki Brows (“Plaintiff”).

For the reasons set forth below, the Court **SUSTAINS** Defendant’s demurrer to the first (breach of contract), second (fraud), and third (detrimental reliance) causes of action, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc., § 472b; California Rules of Court, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Kevin K. Dinh Decl. ISO Demurrer, ¶¶ 2-3; Code Civ. Proc., § 430.41.)

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (FAC, ¶¶ 1, 7.) Later, the lease was extended so as to be valid until November 30, 2023, and again until November 30, 2024. (*Ibid.*) The lease had an option to renew, and Plaintiff exercised the renewal and was told that the renewal was granted. (*Id.*, at ¶ 8.) Relying on the confirmation of renewal, Plaintiff opted out of moving his business and allowed other opportunities to pass. (*Id.*, at ¶ 9.) Plaintiff made the required lease payment for annual minimum rent (\$19,468.20), which was accepted, but was unable to note that the lease was being renewed. (*Id.*, at ¶¶ 10-11.) Subsequently, Defendant refused to provide a signed renewal, and demanded a new term be added to the lease, which required Plaintiff to get permission from a competing tenant to be allowed to continue its business in the same business complex it had been in for over ten years. (*Id.*, at ¶¶ 12-14.) In addition, Plaintiff has contacted Defendant to obtain reimbursement for repairs and Defendant has not yet responded. (*Id.*, at ¶ 15.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed the FAC, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff’s First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed an unlawful detainer action (Case No. N25-1537). On February 20, 2026, this Court denied a motion to consolidate the unlawful detainer action with the instant action.

Legal Standard

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency

of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Analysis

First Cause of Action – Breach of Contract

Defendant argues that Plaintiff’s first cause of action for breach of contract fails because Plaintiff alleges a breach of a written contract but has neither attached the contract to the complaint nor set out the terms verbatim. (Demurrer MPA, p. 5:20-24.) Plaintiff argues that a claim for breach of written contract need not attach a copy of the contract to the complaint or recite its terms verbatim but can rather plead the legal effect rather than the precise language. (Opposition, p. 3:20-24.) Defendant counters that the ultimate facts and essential terms must still be pleaded, which Defendant argues is not the case with the current complaint. (Reply, p. 2:15-24.)

Plaintiff is correct to argue that one is not required to attach a copy of the contract to the complaint or set out the terms verbatim to support a breach of written contract claim, as it is sufficient to plead the legal effect of a written contract instead. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 [“In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.”].) However, the Court agrees with Defendant and finds that Plaintiff has not properly pled the legal effect of the alleged written contract. Plaintiff alleges that the lease had an option to renew and that it exercised its right to renewal, but Plaintiff does not state what the legal effect of the renewal was. (FAC, ¶¶ 7-20.) For example, the prior two renewals took the lease to November 30, 2023, and November 30, 2024, respectively. However, there are no similar essential terms alleged by Plaintiff regarding the contract at issue. Plaintiff asserts that he paid the “Annual Minimum Rent” which would imply that the renewal term was for one year, but again, Plaintiff does not plead any facts for this and “facts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.) The Court sustains Defendant’s demurrer to Plaintiff’s first cause of action for breach of contract for not pleading the legal effect, quoting the essential terms, or attaching a copy of the contract to the FAC.

Second Cause of Action - Fraud

Defendant argues that Plaintiff’s fraud claim fails because it is not pled with the requisite specificity. (Demurrer MPA, p. 7.) Defendant argues that Plaintiff’s references to “Defendant” throughout the complaint is ambiguous because Defendant is not the original landlord. (*Ibid.*) Another position Defendant takes is that it is improper that “[t]he FAC fails to allege exactly what was said” by Veronica Prather. (*Ibid.*) Plaintiff argues that there is only one defendant, so it is not sure what Plaintiff is confused about. (Opposition, p. 4.) In response to the argument that the complaint does not allege

what Veronica Prather said, Plaintiff argues that “[t]he FAC is clear that Defendant made representations that to renew, Plaintiff had to accept some conditions, which were accepted.” (*Ibid.*) In the reply, Defendant points out that Plaintiff does not allege knowledge of falsity and that there is a difference between alleging the basic topic of what Veronica Prather stated versus what exactly she actually said, and that Plaintiff’s allegations are insufficient. (Reply, pp. 3-4.)

“The elements of fraud are ‘ (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” ’ ” (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184.) Further, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc.* (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

The Court does not find the FAC’s references to “Defendant” ambiguous in that Defendant is identified in the caption by Plaintiff as “Ramanujan Group LLC as successor in interest to Blackhawk Centralcal LLC.” (FAC, p. 1.) Further, the original landlord is *specifically defined* by Plaintiff as “BLACKHAWK.” (First Amended Complaint, ¶ 2.) There is no unacceptable ambiguity with how Plaintiff refers to the parties because when Plaintiff refers to Defendant, there is no reason to think Plaintiff is referring to BLACKHAWK, as that party is separately defined.

However, the Court agrees with Defendant that the FAC fails to allege what exactly was said that was false. The law requires a plaintiff asserting fraud to allege what was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157 [“The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, *what they said or wrote*, and when it was said or written.”] italics added.) Here, Plaintiff does not allege what Veronica Prather said or wrote by the allegation that she “stated some conditions Defendant wanted.” (FAC, ¶ 24.) Fraud must be pleaded with specificity and what was said or written that is alleged to be fraudulent must be alleged. (*Tarmann v. State Farm Mut. Auto. Ins. Co.*, *supra*, 2 Cal.App.4th at 157.)

The Court also agrees that the FAC fails to allege knowledge of falsity, but Defendant did not argue this in the moving papers, which means that Plaintiff did not have a chance to respond. Thus, the Court will not sustain the demurrer on this basis. (*Magic Kitchen LLC v. Good Things Intern. Ltd.* (2007) 153 Cal.App.4th 1144, 1161 [“It is elementary that points raised for the first time in a reply brief are not considered by the court.”].)

Nonetheless, the Court sustains Defendant’s demurrer to Plaintiff’s second cause of action for fraud, with leave to amend, for failing to plead with specificity what Defendant said or wrote, that is basis of the allegedly fraudulent representation.

Third Cause of Action – Detrimental Reliance

Defendant argues that this claim is not a standalone cause of action and that this claim fails because “Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave.” (Demurrer MPA, p. 7.) Plaintiff argues that “Defendant’s demurrer to the detrimental reliance cause of action is based on the same arguments as its demurrer to the fraud cause of action. Therefore, it should also be denied.” (Opposition, p. 5.) In the Reply, Defendant argues that Plaintiff’s argument is insufficient and contains only legal conclusions. (Reply, p. 4.)

Defendant’s argument that the Court should sustain the demurrer to this cause of action because Defendant cannot have simultaneously tried to induce Plaintiff to stay and leave is not persuasive. Parties are allowed to plead in the alternative. (*Adams v. Paul* (1995) 11 Cal.4th 583, 593 [“a party may plead in the alternative and may make inconsistent allegations.”].)

However, the Court concludes that that “detrimental reliance” does not appear to be a standalone cause of action. (See generally, California Causes of Action §§ 1-1:00 – 63:50.) Detrimental reliance is an element for fraud, promissory estoppel, and equitable estoppel. The Court suspects that Plaintiff is seeking to assert a promissory estoppel or unjust enrichment claim, but it is not clear and Plaintiff’s argument in the Opposition does not provide clarification. The Court sustains Defendant’s demurrer to Plaintiff’s third cause of action for detrimental reliance, with leave to amend.

Ruling

For the reasons discussed above, the Court **SUSTAINS** Defendant’s demurrer to the first (breach of contract), second (fraud), and third (detrimental reliance) causes of action, with leave to amend. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc., § 472b; California Rules of Court, rule 3.1320(g).)

10. 9:00 AM CASE NUMBER: C25-00261

CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF’S 1ST AMENDED COMPLAINT
MOTION FILED TO/FOR**

FILED BY:

TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Ramanujan Group LLC, as successor in interest to Blackhawk Centralcal LLC (“Defendant”), which seeks to strike a request for punitive damages and a request for attorney fees from the prayer for relief of the first amended complaint (“FAC”) filed by plaintiff Kiki Brows (“Plaintiff”).

For the reasons set forth below, the Court **GRANTS** Defendant’s motion to strike as to the punitive damages allegation, with leave to amend, and **DENIES** the motion to strike as to the attorneys’ fees allegation. Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

Meet and Confer

The meet and confer requirement has been satisfied. (Kevin K. Dinh Decl. ISO Demurrer, ¶¶ 2-3; Code Civ. Proc., § 435.5.)

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (FAC, ¶¶ 1, 7.) Later, the lease was extended so as to be valid until November 30, 2023, and again until November 30, 2024. (*Ibid.*) The lease had an option to renew, and Plaintiff exercised the renewal and was told that the renewal was granted. (*Id.*, at ¶ 8.) Relying on the confirmation of renewal, Plaintiff opted out of moving his business and allowed other opportunities to pass. (*Id.*, at ¶ 9.) Plaintiff made the required lease payment for annual minimum rent (\$19,468.20), which was accepted, but was unable to note that the lease was being renewed. (*Id.*, at ¶¶ 10-11.) Subsequently, Defendant refused to provide a signed renewal, and demanded a new term be added to the lease, which required Plaintiff to get permission from a competing tenant to be allowed to continue its business in the same business complex it had been in for over ten years. (*Id.*, at ¶¶ 12-14.) In addition, Plaintiff has contacted Defendant to obtain reimbursement for repairs and Defendant has not yet responded. (*Id.*, at ¶ 15.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed the FAC, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff's First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed an unlawful detainer action (Case No. N25-1537). On February 20, 2026, this Court denied a motion to consolidate the unlawful detainer action with the instant action.

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Punitive Damages

Defendant argues that Plaintiff has pled no facts to support a prayer for relief for punitive damages. (Motion to Strike, pp. 5-8; Reply, p. 2.) Plaintiff argues that a properly pleaded fraud cause of action will support a claim for punitive damages and that unless the demurrer to the fraud cause of action is sustained by the court in the concurrently filed demurrer of Defendant, then the motion to strike

should be denied. (Opposition, p. 3.)

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-168.) Under Civil Code section 3294, punitive damages may be awarded in “an action for the breach of an obligation not arising from contract” where Plaintiff proves the “defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(a).) The statute by its terms is stated in the disjunctive, and pleading facts supporting any one of the grounds for punitive damages (oppression, fraud or malice) is sufficient. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal.App.3d 1220, 1238-1239 [fraud alone sufficient for punitive damages].)

Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294(c)(3) [emphasis added].) Alleging an intentional tort alone is not enough to support a claim for punitive damages: “Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves, supra*, 157 Cal.App.3d at 166.)

Here, the Court has issued a tentative ruling sustaining Defendant’s demurrer to Plaintiff’s fraud cause of action with leave to amend. In addition, the Court finds that the FAC’s allegations relating to oppression, fraud, or malice are minimal and insufficient to support the requested punitive damages. (FAC, ¶¶ 1-27.) The Court GRANTS Defendant’s motion to strike the punitive damages allegation, with leave to amend.

Attorneys’ Fees

Defendant argues that Plaintiff cannot recover attorneys’ fees because it has not alleged a valid contractual or statutory basis for the recovery of attorney fees. (Motion to Strike, p. 8; Reply, p. 3.) Plaintiff argues that the lease provides for attorney fees to the prevailing party and asserts that it will amend to attach the lease to the complaint. (Opposition, p. 3.)

There is no pleading standard to allege attorneys’ fees. Unsupported attorneys’ fees allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) “There is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; *Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 497 [error to strike attorney fees sought under Code of Civil Procedure section 1021.5, because there is no pleading requirement involved].)

Here, the Court DENIES Defendant’s motion to strike Plaintiff’s attorneys’ fees allegation from the prayer for relief due to the principle that unsupported attorneys’ fees allegation need not be stricken. Nevertheless, Plaintiff is encouraged to attach the lease with the attorneys’ fees clause to the second amended complaint.

Ruling

For the reasons discussed above, the Court **DENIES** Defendant’s motion to strike as to the attorneys’

fees allegation appearing at page 6, lines 2-3 of the FAC.

The Court **GRANTS** Defendant's motion to strike as to the punitive damages allegation appearing at page 6, lines 3-4 of the FAC, with leave to amend.

Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-00437
CASE NAME: RYLAND BROOKS VS. DOES 1 TO 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: RYLAND BROOKS**
FILED BY: BROOKS, RYLAND

TENTATIVE RULING:

Summary

Petitioner Charlotte Brook's Petition for Approval of Compromise of Minor Ryland Brooks ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on March 18, 2026.

Background

On December 18, 2025, Petitioner Charlotte Brooks, parent and guardian *ad litem* for her son, Ryan Brooks (DOB 2/11/2012), filed this Petition through counsel Brian D. Sudano to compromise the claim that Minor had against a substitute teacher, Ms. Thomas, who works for the Defendant Brentwood Unified School District, related to an accident that occurred on January 17, 2024 at Bristow Middle School. In that incident, Minor sustained injuries including a scratch to his face when Ms. Thomas attempted to remove Minor's cell phone from him. Petitioner represents that Minor has received treatment and has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$5,000, of which \$3,132.10 is to be paid to Petitioner behalf of Minor. The deduction of \$1867.90 represents a deduction from the settlement to satisfy attorney's fees and costs incurred in reaching this compromise. Petitioner prepared a proposed order, which the Court will execute.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 18, 2025. No appearance is required at the hearing on March 18, 2026.

12. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: DELTA DENTAL

TENTATIVE RULING:

Summary

Defendant Delta Dental's ("Delta") Motion to Quash Service of Summons and Complaint initiated by

Plaintiff Thelma Ellenberger is **granted**.

Background

In this case, Plaintiff Thelma Ellenberger ("Plaintiff") alleges dental malpractice against Delta and Defendant Western Dental. She alleges that Defendant improperly placed a dental implant into her mouth on December 27, 2023, which is crooked and causes pain, discomfort and suffering.

On November 26, 2026, Delta filed a Motion to Quash Service of Summons and a Request for Dismissal. The Motion is supported by Notice, Amended Notice, a Memorandum of Points and Authorities, the Declaration of Warren Hodges, the Declaration of Jaudine Delute, and a Request for Judicial Notice.

Delta claims that under Cal. Code of Civ. Proc § 416.10, summons must be served on the agent for service of process, who, in Delta's case, is (1) the person designated as agent for service of process or, in the absence thereof, the Secretary of the State of California, (2) the president, chief executive officer or other head of the corporation or other entity, a vice president, secretary or assistant secretary, treasurer or assistant treasurer, a controller or chief financial officer general manager, or person authorized to receive service. (Code Civ. Proc., § 416.10, subds. (a), (b).). Delta asserts that it was improperly served by a process server who left the package with a representative of the building lessor, Jaudine Delute, who is not an agent for service of process for Delta.

On December 9, 2025, Plaintiff filed an opposition to the Motion. However, the opposition does not set forth any legal analysis, or argument in opposition of the Motion, and fails to contest any of the material facts alleged in the Motion. Plaintiff simply requested additional time to properly serve Delta.

On March 11, 2026, Delta filed a Reply Brief, asserting that Plaintiff did not properly oppose the motion.

Delta's Request for Judicial Notice is granted without opposition.

Analyses

Self-Represented Litigant

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

The legal authorities recognize that a party’s failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to oppose this Motion to Quash with legal authorities, Plaintiff concedes all the contentions and arguments in the moving papers.

California courts recognize that a party’s failure to file a proper opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Here, Plaintiff does not file a Memorandum of Points and Authorities contesting any of the legal authorities cited by Delta. Her opposition consists of her declaration, which does not contest any of the factual statements and legal arguments asserted by Delta. Indeed, her declaration states, “I request the court to allow me time to properly serve in the manner required by the defendants. I seek legal help and to the best of our knowledge appeared was the person to serve the documents.”

Held to the standard of a practitioner before the Court, Plaintiff’s admission of improper service is sufficient to grant Delta’s Motion to Quash Summons and Complaint.

Ruling

1. Delta’s Motion to Quash Summons and Complaint is **granted**.
2. The Court will execute the proposed order lodged by Delta on November 26, 2025, and will attach a copy of this tentative ruling.

13. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING AUTHORITY

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 13, 14, and 15, which are:

1. Defendant Richmond Housing Authority's Demurrer to the Complaint
2. Defendant City of Richmond's Demurrer to the Complaint
3. Defendant Richmond Neighborhood Stabilization Corporation's Demurrer to the Complaint

Collectively, the "Richmond Defendants."

All three demurrers were filed and served on November 19, 2025. Because Plaintiff Martha Cauch ("Plaintiff") did not file a timely opposition to each of the above demurrers, all three Demurrers are **sustained** without leave to amend.

Background

In this case, Plaintiff alleges that she was injured when a kitchen cabinet fell on her while residing at a dwelling owned and/or operated by the City of Richmond and/or the City of Richmond Housing Authority. She filed a complaint against several defendants, including the above entities.

On November 19, 2025, Defendants Richmond Housing Authority, City of Richmond, and Richmond Neighborhood Stabilization Corporation, (collectively, "Richmond Defendants") filed Demurrers to Plaintiff's Complaint, asserting that each of cause of action fails to state causes of action against the Richmond Housing Authority. (CCP 430.10(e)). Plaintiff did not file a timely opposition with the Court as required by Cal. Code of Civ. Proc § 1005(b).

On March 11, 2026, Defendant Richmond Neighborhood Stabilization Corporation ("RNSC") filed a Notice of Non-Opposition. RNSC further requested that the demurrer be sustained without leave, and that the cross-complaints filed against it by Cross-Defendants Salvador Gonzalez and Schlatter Realtors for indemnity be dismissed.

Analysis

Non-Opposition to City of Richmond Neighborhood Stabilization Corporation's Demurrers

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes

waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Applied here, the Court finds that failure to timely RNSC is a deemed to Plaintiff's consent to the sustaining the Demurrer without leave to amend. The Court finds good cause to grant the relief requested by RNSC.

Effect of Late Opposition to the City of Richmond and City of Richmond Housing Authority's Demurrers

Absent compelling circumstances, this Court consistently and strictly construes all procedural deadlines as mandatory. This Court maintains a judicial philosophy that statutory deadlines for motions and other procedural relief contain firm timelines which the legislature has set in order to preserve due process. The Code of Civil Procedure, the California Rules of Court, and local court rules pertaining to deadlines are not mere suggestions. The rules of procedure are commands which ensure fairness by their enforcement.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them."

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion **shall be filed with the court** and copy served on each party at least nine court days... before the hearing." [Emphasis added] Nine court days before the hearing is March 5, 2026. Plaintiff did not timely file an opposition to the Demurrers filed by the City of Richmond and the City of Richmond Housing Authority. Plaintiff's counsel apparently served opposition counsel with her opposition, but did not file a timely opposition with the Court as required by Cal. Code of Civ. Proc §§ 1005(b), 1010.6(a)(4) and Local Rule 3.42 on March 5, 2026 by 11:59:59 p.m. Plaintiff filed a late opposition to the City of Richmond's Demurrer, which was time stamped at 12:56 p.m. on March 6, 2026, over twelve hours late. The opposition did not contain the requisite request for leave to file a late opposition, and did not contain a declaration which attempts to show good cause as to why the opposition was late. Accordingly, the Court exercises its discretion to reject the late filing.

After considering the moving papers by the Richmond Defendants in light of the foregoing statutory and decisional authorities, the Court finds good cause to sustain their demurrers. As such, the Court makes the following rulings and orders.

Ruling

1. Defendant Richmond Neighborhood Stabilization Corporation's Demurrer to the Complaint is **sustained** without leave to amend. The Court also **dismisses** the cross-complaints of Salvador

Gonzalez filed October 20, 2025 and the Cross-Complaint of Schlatter Realtors filed January 15, 2026 for indemnity.

2. The Court does not consider the late opposition by the Plaintiff and the reply brief filed by the City of Richmond and City of Richmond's Housing Authority.
3. The Court **sustains** the Demurrers of the City of Richmond and the City of Richmond's Housing Authority without leave to amend.
4. Counsel for the Richmond Defendants shall prepare and e-file a proposed order conforming to the foregoing ruling no later than five (5) days from the date of the hearing, and shall attach a copy of this tentative ruling.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

See Line 13.

15. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND NEIGHBORHOOD STABILIZATION CORPORATION
TENTATIVE RULING:

See line 13.

16. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
HEARING ON DEMURRER TO:
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Before the Court is a demurrer by General Motors LLC to Plaintiff's complaint. For the reasons set forth, the demurrer to the sixth cause of action is **overruled**. The Court imposes a monetary sanction of \$500 against the demurring party/moving party and its counsel for failure to meet and confer and file the meet and confer declaration pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) as ordered by the Court in its February 18, 2026 tentative ruling and minute order. The sanction shall be paid to the Court within 30 days of this ruling.

Background

Plaintiff CTE Group filed a complaint against defendant General Motors LLC ("GM") alleging claims related to its purchase of a new 2023 Chevrolet Tahoe from Concord Chevrolet. (Compl. ¶¶ 5, 38.) CTE alleges that GM manufactures, sells and distributes Chevrolet vehicles, and that Concord Chevrolet is "certified" by GM to sell those vehicles. (Compl. ¶¶ 2, 6.) Plaintiff received written, express and implied warranties in connection from GM with its purchase of the vehicle. (Compl. ¶¶ 8, 9.)

Plaintiff alleges the vehicle was equipped with a 6.2L V8 engine which is known by GM to be predisposed to defects which impair its function and use. (Compl. ¶ 16.) Plaintiff alleges it made a

number of unsuccessful attempts to have the vehicle's engine defects repaired by authorized GM service centers. (Compl. ¶¶ 11-13, 40-43.) CTE alleges GM has been aware of engine defects in the 6.2L V8 engine used in its vehicles, including the Chevrolet Tahoes, as evidenced by, among other things, numerous reports of problems made to the National Highway Transportation Safety Administration ("NHTSA") and by internal repair information issued in technical service bulletins ("TSBs"). (Compl. ¶¶ 16-19, 22-24, 46-61.)

GM issued a safety recall notice in July 2023 covering the 6.2L V8 engine, and in April 2025, GM issued a notice of recall which included 2023 Chevrolet Tahoes. (Compl. ¶¶ 18, 19.) CTE alleges that the defective engine poses a safety hazard and that GM actively concealed the engine defect. (Compl. ¶ 21.)

Plaintiff alleges six causes of action against GM. GM demurs only to the sixth cause of action for fraudulent concealment.

Legal Standards for Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (*See also City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court deems the facts alleged to be true, "however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604; *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc. § 452.)

Analysis

GM's demurrer is made on two primary grounds: (1) that the complaint does not plead facts sufficient to state a cause of action for fraudulent concealment; and (2) that the complaint fails to allege that Plaintiff had a transactional relationship with GM which would give rise to a duty to disclose information regarding the vehicle defects.

A. Duty to Disclose and Sufficiency of Allegations of Transactional Relationship

The essential elements of a fraudulent concealment cause of action are: " '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' [Citation, some internal quotation marks omitted.]" (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 [quoting *Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850].)

"In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler, supra*, 7 Cal.App.5th at 311.) (*See also Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41.) *Bigler-Engler* holds that the "necessary relationship giving rise to a duty to disclose" involves a " 'transaction' " between the plaintiff and defendant. (*Bigler-Engler, supra*, 7 Cal.App.5th at 311, 312, 314 ["Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."].) (*See also Rattagan, supra*, 17 Cal.5th 1, 41.)

The Court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, petn. for rev. granted and dismissed after *Rattagan, supra*, 17 Cal.5th 1, found the complaint sufficiently alleged a transactional relationship between the car buyer and the manufacturer by alleging the dealership was the manufacturer's agent for the sale of the vehicle. (*Dhital, supra*, 84 Cal.App.5th at 834, 844.) The Court rejected Nissan's argument that the plaintiffs did not adequately plead a buyer-seller transactional relationship to state a fraudulent inducement/fraudulent concealment claim, at least at the pleading stage, because the plaintiffs alleged "that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers." (*Id.* at 844.)

GM argues in its memorandum in support of the demurrer that Plaintiff did not allege that it purchased the vehicle directly from GM, and therefore, Plaintiff cannot assert a fraudulent concealment claim against GM because "any concealment by GM did not arise in a direct transaction between Plaintiff and GM." (MPA ISO Dem. p. 10, ll. 11-12.) GM also argues that Plaintiff has not pled specific facts sufficient to show the dealer from which it purchased the vehicle was GM's agent as a matter of law, relying on a single unpublished decision of a federal district court (*Antonov v. GM LLC* (C.D. Cal. Jan. 19, 2024), Case No. 8:23-cv-01593-FWS-MJR, 2024 U.S. Dist. LEXIS 10178, *1). (MPA ISO Dem. p. 9, l. 26 – p. 10, ll. 1-9, 14-16.) Lower federal court decisions are generally not controlling or binding authority in California courts, and at best are only persuasive authority. (*T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 175; *People v. Gonzales and Soliz* (2011) 52 Cal.4th 254, 296.)

1. Agency and Other Allegations and Relation to Applicable Case Law

In its opposition, Plaintiff argues that it has alleged that CTE had a transactional relationship with GM. In addition to a general agency allegation, CTE alleges that the dealership from which it bought the vehicle is "certified by" GM to sell Chevrolet vehicles, that the sales of GM vehicles including the Tahoe take place exclusively through GM's authorized dealerships, that GM provides all its customers, including Plaintiff, with a written limited warranty covering the vehicle. (Compl. ¶¶ 4, 6, 8, 9.) Plaintiff alleges that GM advertises and markets its vehicles directly to the consumers "for the sole purpose of convincing consumers to go to a Chevrolet dealership to purchase or lease a Chevrolet. (Compl. ¶ 82.)

Regarding the dealership's status as an agent for GM, Plaintiff's allegations consist of substantially more than a general allegation of agency (Compl. ¶ 4) and its allegation that the dealership was certified by GM to sell its Chevrolet vehicles (Compl. ¶ 6). Plaintiff alleges that sales of GM vehicles to

consumers are made exclusively through GM's authorized dealerships under a written dealer agreement imposing numerous obligations on the dealer "for the benefit of Defendants' brand, reputation, and position in the marketplace." (Compl. ¶¶ 82, 83.) Plaintiff alleges a series of facts regarding GM's control over "nearly every material aspect" of its authorized dealerships under which GM acts as principal in the relationship. (Compl. ¶¶ 84.A.-U, 85.)

Plaintiff also alleges that GM "derived a monetary benefit" from the vehicle sale either directly through remission of a portion of the purchase price to GM by the dealer or indirectly by the dealer having to order more vehicles or not returning an unsold vehicle to GM. (Compl. ¶ 86.) CTE alleges GM controls the marketing and sale of its vehicles to consumers, including the vehicle in question. (Compl. ¶ 87.)

The facts of *Bigler-Engler* are distinguishable from those alleged in the complaint here, as the medical device in that case was prescribed by a doctor for the plaintiff as part of her post-surgical care, and the device was rented to the plaintiff by a third party surgery center which owned the device. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 314.) The Court stated, among other things, that "[t]he evidence does not show Breg [the manufacturer] knew – prior to this lawsuit – that Engler was a potential user of the Polar Care device, that she was prescribed the Polar Care device, or that she used the Polar Care device. The evidence also does not show that Breg directly advertised its products to consumers such as Engler or that it derived any monetary benefits directly from Engler's individual rental of the Polar Care device." (*Id.* [emphasis added].)

The complaint pleads sufficient facts to allege a transactional relationship with GM. Plaintiff alleges facts that were missing in *Bigler-Engler*, including that GM gave Plaintiff a written limited warranty, that GM directly advertises its vehicles to consumers, and that it derived monetary benefits as a result of Plaintiff's purchase of the vehicle from the dealership. (Compl. ¶¶ 4, 6, 8, 9, 82, 86.) Plaintiff has alleged facts to support the existence of an agency relationship between GM and the dealership selling the vehicle that extend well beyond the allegations the Court in *Dhital* found were sufficient to allege an agency relationship for purposes of a demurrer, a decision which is binding precedent in this Court. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 312; *Dhital*, *supra*, 84 Cal.App.5th at 844 [finding sufficient relationship alleged at the pleading stage based on allegations plaintiffs in that case "bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers."].) (See also *Jones v. ConocoPhillips Co.*, *supra*, 198 Cal.App.4th at 1200 [holding complaint sufficient at the pleading stage to state fraudulent concealment cause of action against manufacturers of toxic chemicals by a plaintiff who worked at factories using the chemicals and allegedly died based on his exposure to the chemicals]; *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1132-1133 [holding no showing of reasonable probability jury would have found for defendant if jury had been instructed under *Bigler-Engler* "to consider whether similar evidence of transactions, advertising, or J&J's direct monetary benefit supported the transactional requirement," where there was undisputed evidence the plaintiff, who lived with her parents growing up, and her mom used the product and that defendant "was involved in retail sales of [the product] to consumers and profited therefrom"].)

The facts alleged by Plaintiff also include much more extensive, specific factual allegations to support the existence of an agency relationship than the agency allegations in the unpublished, nonbinding

Antonov decision cited by GM. (*Compare* Compl. ¶¶ 4, 6, 82-90, and 137 to *Antonov, supra*, 2024 U.S. Dist. LEXIS 10178 at *25-26 [applying the federal pleading standard for a motion to dismiss, not California's pleading standard on a demurrer, in which the plaintiff only alleged "that he acquired the Vehicle 'from an authorized dealer and agent' of Defendant and the dealership was 'authorized by [Defendant] to do business in the State of California on behalf of [Defendant]' " without additional supporting facts].)

2. GM's Reply Arguments and Authorities

In its reply to the opposition, GM argues that GM is not liable for "independent negligence of a dealership employee or a third party entity with no relationship to it," citing *Mel Clayton GM LLC v. GM LLC Motor Co.* (2002) 104 Cal.App.4th 46. The *Mel Clayton* decision arose in a different factual and legal context, specifically a claim by a dealer for express contractual indemnity, in which the Court of Appeal held the trial court misconstrued the terms of the contractual indemnity provision and improperly granted the dealer summary judgment based on a settlement by the dealer of a third party's claim when the indemnity only applied if the dealer was not negligent and the issue of the dealer's not being negligent, or only passively negligent, had never been litigated or proven by the dealer. (*Id.* at 59-60.) Here, Plaintiff alleges an agency relationship between GM and the dealership, with specific supporting facts, and Plaintiff alleges a claim of fraudulent concealment, a form of deceit under Civil Code section 1710, not negligence.

Other cases cited by GM in its reply are distinguishable on their facts and the legal issues presented. Among other things, none of the cases involved tort claims for fraudulent concealment or addressed the sufficiency of factual allegations of an agency relationship in the context of a demurrer to a fraudulent concealment claim against a product manufacturer. (*Avalon Painting Co. v. Alert Lumber Co.* (1965) 234 Cal.App.2d 178, 182-185 [considering original and amended cross-complaint allegations, there was a probability the plaintiff could allege breach of contract and breach of express warranty causes of action against retailer who sold manufacturer's defective product]; *Vandermark v. Ford Motor Co.* (1964) 61 Cal.2d 256, 260-261 [reversing nonsuit for vehicle manufacturer who could be held liable in strict liability for vehicle defects which caused an accident when manufacturer delegated final steps in making its cars ready for use and sale to its authorized dealers]; *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 121-122 [rejecting component part manufacturer Tyco's appeal of a jury verdict against it, including its claim that it was not liable on the implied warranty cause of action for defects in medical device, because of its lack of privity with device developer Cardinal, in a commercial, non-consumer product sale].)

While GM argues the "representations" of an employee of a dealership are not a representation of an agent of the defendant principal (Reply p. 3, ll. 20-21), the proposition assumes that the dealership as GM's agent is not bound by the representations (or omissions) of its employees, a proposition which the cases cited by GM do not support. Further, Plaintiff's fraudulent concealment claim is not based on affirmative "representations" by the dealership or its employees, but on what was not disclosed to Plaintiff by the dealership (and GM) in connection with Plaintiff's vehicle purchase.

B. Failure to Plead Fraudulent Concealment with Specificity

The facts stating the essential elements of a fraud cause of action must be pleaded with specificity such that the plaintiff must allege "facts which 'show how, when, where, to whom, and by what

means the representations were tendered.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The specificity standard for alleging a fraud claim takes into account the difference between a fraud claim based on affirmative misrepresentations and one based on concealment. (*Alfaro v. Community Housing Improvement System and Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 ["[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' ".]) "Less specificity should be required of fraud claims 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy," [citation]; "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party" ' [Citation omitted.]" (*Id.* at 1384.)

In *Rattagan*, the Court explained that if the duty of disclosure "arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts, . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. '[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] . . . are insufficient for the foregoing purposes.' [Citation omitted.]" (*Rattagan, supra*, 17 Cal.5th at 43-44.)

GM asserts the complaint fails to allege facts for all the necessary elements of fraudulent concealment as set forth in these authorities. The Court disagrees.

1. Application of Specificity Standards to Plaintiff's Complaint

Plaintiff's complaint alleges that no one at the dealership where Plaintiff purchased the vehicle disclosed information regarding the engine defects that were available to GM through the technical service bulletins and thousands of consumer complaints. Plaintiff alleges (a) the content of the omitted facts (engine defects related to the 6.2L V8 engine used in Tahoes and other GM vehicles), (b) GM's and the dealerships' awareness of those facts, (c) facts showing the information was not accessible to the plaintiff, the point at which the facts should have or could have been disclosed (when Plaintiff purchased the vehicle), and (d) Plaintiff's actual and justifiable reliance by purchasing the vehicle without knowledge of the omitted facts which Plaintiff alleges would have been material to CTE's decision to purchase and if known, would have resulted in CTE not buying the vehicle. (*Rattagan, supra*, 17 Cal.5th at 43-44; Compl. ¶¶ 17-23, 26, 27, 35-39 [including allegation that "at no time" was Plaintiff informed the vehicle Plaintiff purchased was equipped with the defective engine before it purchased the vehicle], 44 [neither GM nor any of its "agents, dealers, or representatives informed Plaintiff of the Defective Engine" at the time of Plaintiff's purchase], 45 [if Plaintiff had been informed, Plaintiff would not have bought the vehicle], 46-67 [GM's prior, exclusive, and superior knowledge of the engine defect], 69-72 [GM's marketing materials and ads relied on by Plaintiff omitting engine defect information], 73-77 [Plaintiff's actual and reasonable reliance and damage], 78-81 [GM's continued marketing with knowledge of engine defect and nondisclosure by GM, agents, dealers and representatives], 88, 89 [GM actively concealed information on the engine defect from

consumers and GM's authorized dealerships], 135 [incorporating prior allegations], 136-141.)

Though some of the allegations regarding GM's marketing materials which did not disclose the defects are alleged generally (*see* Compl. ¶¶ 38, 39, 81), other allegations cite specific marketing materials and representations made by GM in those materials and quote relevant content regarding the engines, which is sufficient to apprise GM of the factual basis of the allegations regarding its marketing materials under the circumstances. (Compl. ¶¶ 32-35, 69-71 [citing and quoting content of 2023 Chevy Tahoe marketing brochure]; *Committee on Children's Television, Inc. v. General Foods Corp.*, *supra*, 35 Cal.3d at 216.) As Plaintiff alleges, however, Plaintiff's claim is based on fraudulent concealment or nondisclosure of material information regarding the engine defects, which it alleges was absent from the marketing materials, or not otherwise provided to Plaintiff by GM or the authorized dealership when it bought the vehicle. (Compl. ¶ 72.)

2. GM's Reply

In its reply, GM argues that Plaintiff has not alleged facts showing GM was aware of defects of this specific vehicle bought by Plaintiff and intended to defraud Plaintiff. The facts alleged regarding the engine defect in the 6.2L V8 used in the Tahoe, the predisposition of Tahoe vehicles equipped with the 6.2L V8 engine to have engine defects that cannot be repaired based on numerous consumer complaints and GM's TSBs which ultimately resulted in safety recalls, and the fact the vehicle was presented to authorized GM authorized repair and service centers for repair for the same type of defect reflected in thousands of NHTSA complaints and the TSBs (Compl. ¶¶ 11-13, 16-19, 23, 24 [Defendants forced to acknowledge models equipped with defective engine "including the Vehicle, suffer from an inherent defect" (emphasis added)], 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not be fixed], 47-61 [TSBs and NHTSA complaints]) are sufficient at the pleading stage to support inferences that GM knew or should have known about the vehicle's defects to state this cause of action.

As to the "intent to defraud" element, the allegations of the complaint state sufficient facts with specificity regarding GM's intent to conceal the material information regarding the 6.2L V8 engine defects from Plaintiff. (*See, e.g.*, Compl. ¶¶ 80, 82-90 [GM controls sales of vehicles, had exclusive knowledge of the engine defect and inability to fix it resulting in safety recalls, and intentionally concealed information regarding the engine defects from its dealers and from consumers], 136-138 [GM deceived Plaintiff by promising vehicle would meet its warranties when it knew the vehicle's engine defect could not be repaired], in addition to others cited above].)

Conclusion and Ruling on the Merits of the Demurrer

For these reasons, the general demurrer to the sixth cause of action is **overruled**.

Failure to Comply with Court's February 18, 2026 Order to Meet and Confer

The hearing on the demurrer and related motion to strike was originally scheduled for February 18, 2026. The Court posted its tentative ruling the preceding afternoon pursuant to the Court's Local Civil Rules. No party contested the tentative ruling by 4:00 p.m. on February 17, 2026, and the tentative ruling became the order of the Court, reflected in the Court's February 18, 2026 Minute Order. The parties were ordered to meet and confer by telephone, videoconference, or in person pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) by March 4, 2026, and counsel for the

demurring party/moving party was ordered to file a declaration demonstrating compliance by March 9, 2026. As of 8:30 a.m. on March 12, 2026, no declaration showing compliance with the Court's February 18, 2026 order was filed. The Court therefore awards a **monetary sanction** of \$500 against GM and its counsel for failure to comply with the Court's February 18, 2026 order and the applicable meet and confer statutes in connection with the demurrer and motion to strike. The sanction shall be paid to the Court within 30 days of the date of this ruling.

17. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT FILED BY GENERAL MOTORS, LLC**

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a motion by General Motors LLC to strike portions of the complaint. For the reasons set forth, the motion is **denied**.

Background

The factual background of the case is addressed in the Court's tentative ruling on the related demurrer to the fraudulent concealment cause of action by General Motors LLC ("GM"). GM has also filed a motion to strike Plaintiffs' claim for punitive damages primarily on the basis that Plaintiffs' fraudulent concealment claim, the claim on which the prayer for punitive damages is based, is not adequately pleaded.

Legal Standards for Ruling on Motion to Strike Punitive Damages

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc. § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-168.) Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) The statute by its terms is stated in the disjunctive, and pleading facts supporting any one of the grounds for punitive damages (oppression, fraud or malice) is sufficient. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235

Cal.App.3d 1220, 1238-1239 [fraud alone sufficient for punitive damages].)

Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code § 3294(c)(3) [emphasis added].) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves, supra*, 157 Cal.App.3d at 166.)

Analysis

The parties do not dispute that the only cause of action alleged in the complaint on which Plaintiff's claim for punitive damages is founded is the sixth cause of action for fraudulent concealment. (Opp. to MTS p. 3, ll. 14-15.) Allegations sufficient to support a claim for fraud based on concealment can support a claim for punitive damages. (Civ. Code § 3294(a) and (c)(3); *Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610 [the "pleading of fraud" is sufficient to state a claim for punitive damages, without allegations "that the fraud was motivated by the malicious desire to inflict injury"].)

The Court has concluded in connection with GM's demurrer that Plaintiff has pleaded facts sufficient to state a cause of action for fraudulent concealment, a form of fraud within the definition of the punitive damages statute that would permit recovery of punitive damages if the claim is proven by clear and convincing evidence.

Plaintiff alleges GM concealed the information regarding the engine defect and its inability to be repaired with for the purpose of maintaining its market power, enriching itself, and for competitive reasons. (Compl. ¶¶ 25, 82-90, 137-141.) Plaintiff alleges facts to support that GM concealed material information about serious engine defects in the 6.2L V8 engine affecting the safety of its vehicles, including the 2023 Tahoe, to induce Plaintiff and other consumers to buy the vehicles (parting with property) knowing that the vehicles were worth substantially less as a result of the defective engine which cannot be repaired, and knowing its conduct would cause financial loss or injury to Plaintiffs as a result. (Compl. ¶¶ 17-23, 25-27, 35-39 [including allegation that "at no time" was Plaintiff informed the vehicle Plaintiff purchased was equipped with the defective engine before it purchased the vehicle], 44 [neither GM nor any of its "agents, dealers, or representatives informed Plaintiff of the Defective Engine" at the time of Plaintiff's purchase], 45 [if Plaintiff had been informed, Plaintiff would not have bought the vehicle], 46-67 [GM's prior, exclusive, and superior knowledge of the engine defect], 69-72 [GM's marketing materials and ads relied on by Plaintiff omitting engine defect information], 73-77 [Plaintiff's actual and reasonable reliance and damage], 78-81 [GM's continued marketing with knowledge of engine defect and nondisclosure by GM, agents, dealers and representatives], 88, 89 [GM actively concealed information on the engine defect from consumers and GM's authorized dealerships], 135 [incorporating prior allegations], 136-141.)

Other allegations of the complaint regarding GM's knowledge of the defects and concealment of the alleged widespread problems with the defective engines in its vehicles, including the Tahoe, over many years and that GM intentionally sold its vehicles in conscious disregard for the rights or property interests of customers who would receive defective vehicles posing significant safety risks and would suffer injury. (Compl. ¶¶ 11-13, 16-19, 23, 24 [Defendants forced to acknowledge models equipped with defective engine "including the Vehicle, suffer from an inherent defect" (emphasis

added)], 25, 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not fixed], 47-61 [TSBs and NHTSA complaints].)

While Plaintiffs may not ultimately be able to prove these allegations by clear and convincing evidence as Civil Code section 3294 requires, they allege sufficient facts to support a claim for punitive damages for purposes of a motion to strike. GM does not cite any authority that precludes Plaintiffs from asserting claims for both punitive damages and the Song-Beverly Act civil penalties at the pleading stage. (*See Clauson v. Superior Court, supra*, 67 Cal.App.4th at 1256.)

Conclusion and Ruling

In the Court's discretion, the motion to strike is therefore **denied**.

18. 9:00 AM CASE NUMBER: C25-02571

CASE NAME: FAN PEI KOUNG VS. JOSIANE PEREIRA

HEARING IN RE: APPLICATION TO VACATE PRELIMINARY INJUNCTION (SET PER ORDER FILED 2/4/2026)

FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear remotely via zoom. Both parties are self-represented and the Court is not convinced that proper notices have been provided for the hearing on Respondent Josiane Pereira's Application to Vacate Preliminary Injunction. The Court also issues an order to show cause as to why venue is proper in Contra Costa County. The parties do not live in the State of California.

19. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION JUDGMENT FILED BY PLAINTIFFS

FILED BY: JFP-AG/SAN RAMON LLC A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Before the Court is Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, "Plaintiffs")'s motion for summary judgment, or in the alternative, summary adjudication. The Motion is opposed by Defendant RM Safe 15 Corp. and Defendant San Ramon Hannibal, LLC (collectively, "Defendants"). The Motion relates to Plaintiffs' Verified Amended Complaint ("VAC") for (1) declaratory relief, (2) reformation of contract (for mistake, fraud and inequitable conduct), and (3) reformation of contract (for failure of consideration).

As a threshold issue, Defendants argue that Plaintiffs Motion is untimely.

A motion for summary judgment must be "heard no later than 30 days before the date of trial." (CCP § 437c(a)(3).) Furthermore, notice of the motion must be "served on all other parties to the action at least 81 days before the time appointed for the hearing," with additional time if the motion is served other than by personal delivery. (CCP § 437c(a)(2).) Thirty days before the April 13, 2026 court trial is Saturday March 14th, and the next court day is Monday March 16th. Department 16's regular law and motion date is Wednesday and the hearing date immediately before the summary judgment hearing

cutoff is March 11, 2026.

Even assuming arguendo that the Court had for good cause ordered the motion heard less than 30 days before the date of trial, and the Plaintiffs were able to secure their originally requested hearing date of March 16, 2026 Plaintiffs were also required under subsection (a)(2) to serve notice of the motion at least 81 days before the hearing date. Even if Plaintiffs had personally served their motion the same day they filed it (December 31, 2025), there are only 75 days between March 16, 2025 and December 31, 2025. Since 2024 the summary judgment statute has required service 81 days before the time appointed for hearing. Therefore, the motion was untimely per statute at the outset.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Any argument that Defendant waived the required notice by filing a substantive response to the MSJ are without merit. While cases have found such a waiver in the context of other motions, courts have generally found that in the context of an MSJ, waiver of the minimum notice “should only be based on the affirmative assent of the affected parties.” (*Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768.) “In sum, the statutory language and existing case law lead [] to the conclusion a trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Ibid.*)

Here, Defendants objection to Plaintiffs’ untimeliness suggests lack of consent on their part. The Plaintiffs’ motion for summary judgment is denied.

20. 9:00 AM CASE NUMBER: MSC21-01391
CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP
HEARING ON SUMMARY MOTION CONTD FROM 3/4/26 TO BE HEARD W/PLTFS MOTION FOR SJ
ON 3/18/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant RM Safe 15 Corp. (“RM 15”) and Defendant San Ramon Hannibal, LLC (“Hannibal”) (collectively, “Defendants”) Motion for Summary Judgment or in the alternative, Summary Adjudication. The Motion relates to Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, “Plaintiffs”)’s Verified Amended Complaint (“VAC”) for declaratory relief and contract reformation.

As a threshold issue, the Court notes that Defendants’ separate statement fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each “undisputed material fact” to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule

3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

“If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.”

Here, although the Defendants have noticed each of Plaintiffs’ three separate causes of action, the separate statement does not tie each “undisputed material fact” to the specific cause of action to be adjudicated. Instead, Defendants provide a list of “undisputed material facts” that purport to apply to all causes of action on which they seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: “(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.”

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as “[t]he parties’ separate statements ‘are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.’” (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court’s discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) [“The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.”])

Rather than denying the motion at the outset, the Court analysis the motion as a motion for summary judgment. Because the Court concludes, as described further below, that there is a genuine dispute of material fact with respect to Plaintiffs’ first cause of action, it need not reach Defendants arguments with respect to Plaintiffs’ second or third causes of action as Defendants are not entitled to the entry of judgment as a matter of law.

Defendants’ motion for summary judgment is **denied**.

Request for Judicial Notice

Both Defendants' and Plaintiffs' unopposed requests for judicial notice are **granted**, subject to limitations. (Evid. Code §§ 452, 453; *Linda Vista Village San Diego Homeowner's Association, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face."]; see also *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Brief Factual Background

This suit concerns nine commercial leases entered into between defendant RM 15 Safe Corp, the original lessor, and the predecessors in interest of the nine plaintiff LLCs, the original lessees.

The operative pleading is plaintiffs' Second Amended Complaint, filed on December 15, 2022. The plaintiffs are all Delaware LLCs. They are wholly owned by non-party JFP AG Holdings, LLC. The

Defendants are RM 15, the original lessor, and Defendant San Ramon Hannibal LLC.

Plaintiffs allege the following chronology of events:

January 2011. The leases were entered into between RM 15 and non-party lessees referred to as the Acadia entities.

November 2011. Plaintiffs acquired the subject leases from the Acadia entities, and assumed the obligations under the leases. RM 15 was aware of this transfer and assumption.

January 2014. In discussions of an unrelated lease, the principals learned that there was some degree of confusion and ambiguity concerning the right to serially exercise plaintiffs' option to extend the leases every five years. Accordingly, the parties agreed that they would sign amendments clarifying that each plaintiff could exercise all of its extension options at once, which would extend the lease term out to 2083.

The amendments were signed in or around this time.

On unspecified dates, RM 15 transferred the subject properties to its nine affiliated LLCs.

February, 2021. Plaintiffs' principal discovered that the amendments, which concerned the exercise of the extension option, created an ambiguity as to the exercise of the purchase option.

During discussions between plaintiffs' principal and defendants' principal, defendants expressed the position that the practical effect of the amendments was to negate plaintiffs' purchase option rights — until 2083.

Based on these allegations, Plaintiffs allege a cause of action for declaratory relief as well as two separate causes of action for reformation. Plaintiffs seek non-monetary relief and attorney fees; they do not seek damages.

In the First Cause of Action, Plaintiffs seek a declaratory judgment in two respects: (1) that they have the right to exercise their purchase options at any time during the lease, not just at the end of the lease, and; (2) and that purchase price does not include the fair market value of the buildings on the leased premises. In the alternative, with regard to the timing issue, the Second and Third Causes of Action seek reformation of the lease amendments; plaintiffs seek to add language clarifying that plaintiffs do not have to wait until the end of the extended lease term (2083) to exercise their purchase option.

Analysis

Defendants move for summary judgment on Plaintiffs' first cause of action for declaratory relief on several grounds. The gravamen of their argument is that section 31.02 of the parties' ground leases is unambiguous with respect to the calculation of "Fair Market Value" when read in conjunction with section 9.01(b) and that the purchase price is clear on the price to be paid under the purchase option.

Section 31.02 of the Ground Lease reads in full:

Landlord hereby grants to Tenant the option to purchase (the "Purchase Option") the

Premises, as of the end of the Original Term of this Lease, or if and to the extent Tenant exercises its options to extend the term of this Lease, as of the end of any current Extended Term (the "Purchase Option Date") for a price equal to the Fair Market Value of the Premises as unencumbered by this Lease or any Occupancy Lease as herein after determined, plus in either case all closing costs including without limitation any applicable prepayment penalty. Such option shall be exercised by written notice from Tenant to Landlord, given not less than one (1) year prior to the expiration of the Original Term of this Lease or such Extended Term, as the case may be, and in each case accompanied by a statement of the Fair Market Value. If Landlord and Tenant failed to agree on the within fifteen (15) days following Tenant's notice of exercise of the Purchase Option, such Fair Market Value shall be determined by appraisal in accordance with Article IX of this Lease.

Section 9.01 of the Ground Lease reads in full:

(b) When used in Section 31.02, the term "Fair Market Value" means the price that a willing purchaser not compelled to buy would pay, or the price that a willing seller not under any compulsion to sell would be willing to accept, determined as if the Premises is free and clear of all liens, encumbrances, options to purchase, restrictions, reservations and agreements, including, without limitation, this Lease, the Original Occupancy Lease and any Occupancy Lease.

Specifically, Defendants argue that "[t]he language of Section 31.02 is not ambiguous and can be understood in its ordinary and popular sense. Section 9.01 confirms the intent of Section 31.02 that the 'price' includes both 'Land' and [']Building' without regard to the AmCap Ground Lease and without regard to any of the 'Tenant's' other right, titles, interests, purchase options, reservations or agreements." (Motion at 19:5-7.)

Defendants rely on *Pacific Intermountain Express Co. v. Alexander* (1962) 205 Cal.App.2d 640 for their argument that Section 31.02 is not ambiguous and can be understood "in its ordinary and popular sense." (Mot. at 19:4-5.) In *Pacific Intermountain Express*, the lease obligated the tenant to pay a basic monthly rental and an "additional rental" based on the amount of city and county taxes "which shall be levied upon the land and building appertaining thereto, in which said demised premises are located." The lessee claimed ambiguity but the court held that the wording of the lease encompassed the increased taxes imposed on all of the premises of which the demised premises formed only a part.

In opposition, Plaintiffs present evidence that the Ground Leases are ambiguous with respect to the definition of "premises." They point to internal conflict within the Ground Leases with respect to the term "Premises." For example, that while "Premises" is defined in Section 1.01(i) as including both the land and the buildings constructed on the land, Section 8.01 sets forth certain definitions "relating to a taking of or damage to all or part of the Premises or improvements or any interest in them by eminent domain or condemnation." Plaintiffs argue that if "Premises" is understood to include the land and the Building, then the phrase "Premises or improvements" is redundant of the phrase "all or any part of the Premises," and the addition of "or improvements" would therefore be nonsensical. (Opp. at 9:26-10:3.) The Court agrees that the Ground Leases are ambiguous in this

respect.

The Court also finds that *Pacific Intermountain Express* is distinguishable in several respects. *Pacific Intermountain* concerned the interpretation of a tax payment lease provision, specifically: after providing for a basic monthly rental of \$7,704.40, the lease stated that appellant shall pay an “additional rental” based upon the amount of city and county taxes “which shall be levied upon the land and building appertaining thereto, in which said demised premises are located, as they will be for the fiscal year 1958-1959.” (*Id.* at 644.) The tenant argued that the phrase “as they will be” refers to “land and building” rather than to “taxes.” The Court disagreed, finding the argument wholly without merit. (*Id.* at 645 [“it is difficult to conceive of a more strained construction of language which is clear upon its face. The phrase ‘which shall be levied upon the land and building’ is a subordinate clause modifying the word ‘taxes.’ While ‘taxes . . . as they will be’ in a given fiscal year has a readily understandable meaning, ‘land and building . . . as they will be’ during a similar period of time is at best a nebulous concept.”].)

Unlike the lease at issue in *Pacific Intermountain Express*, the Ground Leases here have internally inconsistent uses of a key term, as discussed above. And because that contrary language makes the intention of the parties unclear, the Court may consider extrinsic evidence as to intent. (*Oceanside 84, Ltd. v. Fidelity Federal Bank* (1997) 56 Cal.App.4th 1441, 1448.)

Here, contrary evidence of intent exists with respect to the purchase option which requires denial of the Motion for Summary Judgment. Plaintiffs have introduced evidence that the purchase price does not include the fair market value of the buildings on the leased premises. (See, e.g., Johnson Depo. at 78:13-23 [“I’m talking about the deed to the improvements now, right. There’s more than one deed. There’s the deed to the land and a deed to the improvements and the deed of those improvements then from Acadia to me. And it says forever, as I recall. That’s what I recall in reading the documents. So I took this to mean that, you know, I had full ownership and freedom to do with these improvements what I wanted to do – demolish them or not, mortgage them or not, transfer them or not. But I didn’t think I had to pay for them twice.”]). In contrast, RM15’s person most knowledgeable testified that “the purchase option would never be exercised” and that “it’s just there to pass whatever tax standards or I.R.S. standards or investment standards that were needed to have a purchase option, but the purchase option really wouldn’t be exercised because ... it would be a prohibitive formula.” (Kadish Depo. at 76:4-5; 73:13-18.)

Ultimately, as the Court is “required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion” and as “doubts as to whether there are any triable issues must be resolved in favor of the opposing party,” the Motion for Summary Judgment is **denied**. (*Essex Ins. Co. v. Heck* (2010) 186 Cal.App.4th 1513, 1522).

Evidentiary Objections

With respect to Defendants’ objections to Plaintiffs’ evidence raised by Defendants in their “Evidentiary Objections to Plaintiffs’ Separate Statement of Disputed Material Facts, Additional Material Facts and Evidence in Support Thereof,” the Court finds Defendants’ objections do not comply with the requirements set forth in California Rules of Court, rule 3.1354. Objections to evidence in connection with a motion for summary judgment must “be served and filed separately

from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must: [i] identify the name of the document in which the specific material objected to is located [and] [q] quote or set forth the objectionable statement or material..." (Cal. Rules of Court, rule 3.1354(b).)

Here, Defendants put forth the entire disputed material fact as well as the evidence Plaintiffs have adduced in support. Their objections appear to be both to the facts and the evidence themselves. The grounds for objection do not distinguish between the additional material fact or the multiple types of evidence offered in support, leaving it for the Court to determine which ground applies to what evidence or testimony.

The objections are therefore procedurally defective.

21. 9:00 AM CASE NUMBER: MSC21-02115
CASE NAME: K.C. VS DOE 1 COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES
TENTATIVE RULING:

Before the Court is Defendant State of California's, by and through California Department of Social Services, Motion for Judgment on the Pleadings of the Second Amended Complaint ("MJOP").

Defendant requests judicial notice of the FAC and the Court's order sustaining its demurrer to the FAC. Plaintiff requests judicial notice of the SAC as well as the Court's order sustaining its demurrer to the FAC. Both requests for judicial notice are **granted**. (Evid. Code § 452(d).)

Defendant's MJOP is **granted without leave to amend** as outlined below.

Procedural Background

Plaintiff filed her initial Complaint on October 12, 2021. The Complaint included two causes of action: (1) negligence against "Does 1 County", and (2) negligence against Does 2-25. On November 23, 2021, Plaintiff filed her First Amended Complaint, naming Contra Costa County as Doe 1. The FAC again alleged the same two causes of action. The County filed an Answer on January 3, 2022.

On January 9, 2025, Plaintiff filed an "Amendment to Complaint Naming Does 2 through 4." Those Does were identified as: Doe 2: California Department of Social Services ("CDSS"); Does 3: Health Care Delivery Services, Inc.; and (3) Lions Gate Juvenile Court School. The docket does not show any proof of service indicating that any of the newly named Does were ever served with the FAC. However, on April 18, 2025, the State of California by and through the California Department of Social Services filed a demurrer to the FAC. The demurrer included a declaration indicating that counsel for the State met and conferred with Plaintiff's counsel by telephone and they could not reach an agreement on the demurrer.

On August 13, 2025, Plaintiff attempted to file a "Third Amended Complaint." The filing was rejected by the Court and Plaintiff was informed that she needed leave of Court to file a Third Amended Complaint. Thereafter, on August 18, 2025, Plaintiff filed an Opposition "and agreement to file

amended complaint.”

On August 26, 2025, the Court issued its tentative ruling sustaining the State’s demurrer with leave to amend. Plaintiff filed the SAC on September 17, 2025. The State filed its MJOP on November 24, 2025.

Standard for Motion for Judgment on the Pleadings

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) Therefore, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2010) p. 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.)

In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2008) p. 7:295.)

Code of Civil Procedure § 438(g)(1)

Plaintiff argues that the State’s MJOP is barred due to the application of that above Code section as the MJOP is based on the same arguments made in the State’s earlier demurrer. Plaintiff contends that a “statutory motion for judgment on the pleadings ‘does not lie’ on grounds previously raised by demurrer unless there has been a ‘material change in applicable case law or statute’ since the demurrer was overruled,” citing section 438(g)(1) and *Yancey v. Superior Court* (1994) 28 Cal.App.4th 558, 562.

Plaintiff’s argument is not well taken. First, Plaintiff concedes that the State’s arguments were previously raised in its earlier demurrer. Second, Plaintiff’s contention that “the demurrer was overruled” is inaccurate. As the Court’s earlier ruling on the State’s demurrer, which Plaintiff obtained judicial notice of, makes clear the “State’s demurrer is **sustained** for the reasons set forth therein.” (P’s RJN Ex. 2.)

The State is well within its rights to re-raise arguments raised in its demurrer to the FAC which were sustained as a basis for again arguing that the SAC is deficient for the same reasons.

Analysis

The State argues that the SAC fails to allege facts establishing “any viable duty violated by CDSS.” The State’s arguments mirror those made in its demurrer to the FAC in that the State contends that it does not license or have any authority over the Lions Gate facility – which is the site of the alleged abuse.

The original complaint alleged that the Plaintiff was a resident at the Lions Gate facility during all relevant times. In the original complaint and FAC (which added the State as Doe 2), Lions Gate was alleged to be a “juvenile court school.” The Court sustained the State’s demurrer to the

Complaint/FAC based on the State's argument that it was not involved with such facilities. Plaintiff was granted leave to amend.

Without explanation Plaintiff change the description of Lions Gate from a "juvenile court school" (Complaint ¶ 4) to an "emergency shelter group home" (SAC ¶ 4.) The type of facility that Lions Gate is, and whether the State has control over that facility, is at the heart of the State's Motion. Without explicitly stating as such, the State argues that the sham pleading doctrine applies as the allegations in the SAC describing what Lions Gate is are inconsistent with the original complaint – and Plaintiff has failed to assert a reason for the change. The State argues that Plaintiff cannot make this change without explaining the basis for the change.

Sham Pleading Rule

"Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers..." (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) "A noted commentator has explained, 'Allegations in the original pleading that rendered it vulnerable to demurrer or other attack cannot simply be omitted without explanation in the amended pleading. The policy against sham pleadings requires the pleader to *explain* satisfactorily any such omission.'" (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2005) ¶ 6.708, p.6-142.1. [NOTE – this comment remains in the 2025 Rutter Guide.]

"The sham pleading doctrine is not 'intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts. [citation.] Instead, it is intended to enable courts 'to prevent an abuse of process.'" (*Deveny*, supra, 139 Cal.App.4th at 426.) "A pleader may not attempt to breathe life into a complaint by omitting relevant facts which made his previous complaint defective." (*Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 713.)

"If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations." (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 152.) As noted above, the Court has taken judicial notice of the original complaint.

"'Where a verified complaint contains allegations destructive of a cause of action, the defect cannot be cured in subsequently filed pleadings by simply omitting such allegations without explanation.' [multiple citations omitted] 'In such a case the original defect infects the subsequent pleading so as to render it vulnerable to a demurrer.'" (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742-43.)

"However, we have also made it clear that 'a party should be allowed to correct a pleading by omitting an allegation which, it appears, was made as the result of mistake or inadvertence.'" (*Id.* at 743 quoting *Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 836.) "That rule applies even when a complaint is not verified." (*Ibid.*)

Plaintiff argues that the Court must accept the allegations in the SAC as true. As the authority cited by Plaintiff states: "**Generally**, 'an amendatory pleading supersedes the original one, which ceases to

perform any function as a pleading. ‘Such amended pleading supplants all prior complaints. ...’” (*LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 875 fn.5 internal citations omitted, emphasis added.) The introductory ‘generally’ emphasizes that this is not always the case. For example, when a party raises the ‘sham pleading doctrine.’

Plaintiff also argues that the sham pleading doctrine does not apply because the Court, when sustaining the earlier demurrer with leave to amend “granted Plaintiff leave specifically to address the deficiencies in the prior pleading, including the First Amended Complaint’s characterization of Lions Gate as a juvenile court school.” (Opp. at 9:20-23.) Plaintiff contends it “did exactly that in the SAC by pleading Lions Gate as an ‘emergency shelter group home.’” (Opp. at 9:23-24.) As such, Plaintiff argues that “[c]orrecting a factual error in a prior pleading pursuant to express leave of court is not the improper gamesmanship that *Deveny* prohibits.” (Opp. at 9:24-25.)

Plaintiff does not explain their reasoning for this position. There is nothing in *Deveny* or any of the other sham pleading authority that says if an initial demurrer is sustained with leave to amend that any subsequent factual changes fall outside the sham pleading doctrine. The cases appear to state just the opposite: “Moreover, any inconsistencies with prior pleadings must be explained; if the pleader fails to do so, the court may disregard the inconsistent allegations.” (*Vallejo Development Co. v. Beck Development Co.* (1994) 24 Cal.App.4th 929, 946 citation omitted.) “Accordingly, a court is ‘not bound to accept as true allegations contrary to factual allegations in former pleading in the same case.’” (*Ibid.* quoting *Potter v. Arizona So Coach Lines, Inc.* (1988) 202 Cal.App.3d 126, 133, fn. 2.)

Ownes v. Kings Supermarket (1988) 198 Cal.App.3d 379 is instructive. According to the original complaint, plaintiff suffered injuries when he was hit by a car while on a public street adjacent to defendant’s property. Defendant demurred arguing that it did not have the power to regulate a public street and as such did not owe plaintiff any duty. Plaintiff did not dispute that the accident occurred on a public street but argued that defendant had a duty under a ‘special use’ theory. The demurrer was sustained with leave to amend. The first amended complaint again alleged that the accident occurred on a public roadway, but defendants used the area for a ‘commercial purpose’ and therefore owed a duty to plaintiff. The Court again sustained defendant’s demurrer with leave to amend.

Plaintiff’s second amended complaint was “identical in nearly all respects to the first amended complaint except that it included an allegation that plaintiff was on defendants’ premises when he was injured.” (*Id.* at 383.) Defendant demurred again, raising the ‘sham pleading’ doctrine. The court explained that while it is required to assume the truth of the factual allegations of a complaint, “an exception exists where a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings.” (*Id.* at 383-84.)

In such a circumstance, the policy against sham pleading permits the court to take judicial notice of the prior pleading and requires that the pleader explain the inconsistency.” (*Id.* at 384.) “If he fails to do so the court may disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint.” (*Ibid.* citing *Hills Trans. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 709-11.)

The court found that the doctrine applied in that case. As the court explained:

The original complaint clearly alleged that plaintiff was injured in the street adjacent to the supermarket premises. The same allegations were made in the first amended complaint. Only when it became apparent to plaintiff that the court would not accept his argument that the alleged 'special use' of the public street by the supermarket imposed a duty, did plaintiff allege, for the first time, that the injury occurred on 'defendant's premises' rather than in the street. ***Plaintiff offered no explanation for this inconsistency*** to the court below or on appeal. The conclusion is inescapable that this amendment was made solely for the purposes of avoiding a demurrer. Thus, the court properly disregarded the allegation that the accident occurred on defendants' premises. (*Ibid.* emphasis added.)

Here, as in *Owen*, there is no explanation for the pleading inconsistency. As in *Owen*, it appears that the amendment was made solely for the purpose of avoiding the demurrer. The State's observation that the SAC continues to allege that the alleged abusers were "detention center guards and/or officers" supports this finding. (SAC at ¶¶ 5, 31, 36, 38-40.) These allegations are consistent with the facility at issue being a 'detention center' or juvenile court facility – not an emergency shelter group. As such, the SAC at least appears to be internally inconsistent in its allegations.

Plaintiffs "may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings." (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 344 citations omitted.) Plaintiff has failed to do so in this instance.

Leave to Amend

The State argues that leave to amend should be denied as Plaintiff cannot fix the above pleading issues. Plaintiff argues that "denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment," quoting *Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

Plaintiff was already granted leave to amend to attempt to fix the issues with its initial complaint. Plaintiff did so by merely changing the type of facility Lions Gate is alleged to be without explanation for the change. "[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

"The plaintiff bears the burden of proving there is a reasonable possibility of amendment. [¶] To satisfy that burden ... a plaintiff 'must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.' The assertion of an abstract right to amend does not satisfy this burden. The plaintiff must clearly and specifically set forth the 'applicable substantive law' and the legal basis for amendment, i.e., the elements of the cause of action and authority for it. Further, the plaintiff must set forth factual allegations that sufficiently state all required elements of that cause of action. Allegations must be factual and specific, not vague or conclusory.'" (*PGA West Residential Assn. v. Hulven International, Inc.* (2017) 14 Cal.App.5th 156, 189 quoting *Rossberg v. Bank of America, N.A.* (2013) 219 Cal.App.4th 1481, 1491 internal citations

omitted.)

This is especially true here when the sham pleading doctrine is in play.

Plaintiff's contention that the earlier demurrer "was sustained not on the merits but because the prior opposition was procedurally deficient," is inaccurate. While the Court did highlight the procedural problems with Plaintiff's opposition to the demurrer, the Court did substantively rule on it. As noted in the ruling, the "State's demurrer is sustained for the reasons set forth therein." The Court emphasized that since that was "the first time the Court has addressed the issues raised in the State's demurrer, it will grant Plaintiff leave to amend to address them."

Plaintiff was given an opportunity to address the problems pointed out by the State. Plaintiff did so by changing the factual allegations regarding the type of facility that Lions Gate is without explanation for the change. As Plaintiff has had an opportunity to amend and has failed to meet its burden to show how it can amend again to allege a valid claim against the State, leave to amend is denied.

Conclusion

Here, as in *Owens v. Kings Supermarket*, no explanation for the pleading inconsistency has been offered. "A court has inherent power by summary means to prevent an abuse of its process and peremptorily to dispose of sham causes of action." (*Amid v. Hawthorne Cmty. Medical Group* (1989) 212 Cal.App.3d 1383, 1390-91.) The State's motion for judgment on the pleadings is **granted without leave to amend**.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

*HEARING ON MOTION FOR DISCOVERY ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL

FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC

TENTATIVE RULING:

Summary

Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** in part as moot, and **reserved** as set forth herein.

Background

This is a wrongful death action where Plaintiff Lynetta Westbrook, individually, and as heir and successor-in-interest to Alex Pollard, deceased, seeks causes of action for violation of the Elder and Dependent Adult Civil Protection Act (Welfare & Institutions Code § 15600, et. Seq), for Negligence, and for Wrongful Death. Plaintiff claims that Defendant, which operates the skilled nursing facility

located at 13328 San Pablo Ave., San Pablo, California, did not provide for basic needs of Alex Pollard, and withheld services and supervision necessary to provide his basic needs. Mr. Pollard died after contracting the COVID 19 virus. This matter was stayed, pending removal to Federal Court, which was denied. On June 9, 2022, the U.S. District Court for the Northern District remanded this case to this court. On July 6, 2022, Plaintiff sought an appeal to the 9th Circuit Court of Appeals. The 9th Circuit denied Plaintiff's appeal and confirmed the District Court's remand orders. .

During this procedural activity, Defendant pursued several discovery motions against Plaintiff, most of which were granted. Now, Defendant also seeks terminating sanctions in the form of dismissal due to Plaintiff's years-long discovery misconduct, including failure to respond to discovery, and providing evasive responses.

On November 17, 2025, Defendant filed this instant Motion to Abate or alternatively to compel Joinder and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff. The Motion is supported by Notice, Declaration of Valerie Kraml, Request for Judicial Notice, Memorandum of Points and Authorities, and a proposed order.

The relief sought by Defendant includes: (1) Order of Abatement pursuant to Cal. Code of Civ. Proc. § 377.60. as there appears to be omitted heirs who are necessary parties to this wrongful death action. If the action is not abated, Defendant seeks an order to compel joinder of omitted heirs under Cal. Code of Civ. Proc. § 389(a) and requests continuance of the trial date. (2) Defendants also moves for issue, monetary or terminating sanctions pursuant to Cal. Code of Civ. Proc. §§ 2030.030 and 2023.030; and (3) for monetary sanctions in the amount of \$5,422.95 in attorney's fees and costs for bringing this motion.

On March 9, 2026, Plaintiff, though her counsel, Dawn M. Smith, filed an opposition to this Motion. Plaintiff asserts that there are no indispensable parties, as they have already been joined to the case. Specifically, Angel and Emerald Pollard, who have been substituted in for Does 51 and 52, were recently made part of this action as nominal defendants. (Proof of service demonstrates that these new defendants were served on March 10, 2026, several months after Defendant filed this motion.) Thus, this action does not need to be abated. Moreover, Plaintiff claims that terminating sanctions are not appropriate as Plaintiff has already provided verified discovery responses, and has submitted to deposition.

On March 11, 2026, Defendant submitted a reply brief acknowledging that the Motion to Compel joinder would no longer be needed because Angel and Emerald Pollard were served with summons and compliant, which they acknowledged with Notices of Acknowledgement and Receipt dated March 10, 2026. Defendant continues to seek sanctions in the amount of \$5,350, as well as issue and/or terminating sanctions.

The Court **grants** Defendant's request for judicial notice as unopposed.

Analyses

The issue joinder of compulsory parties is **moot**. However, the Court notes that the parties recently joined were served just ten (10) days before the hearing of this motion.

The Court focuses its attention on Defendant's Motion for Issue, Terminating and/or Monetary

Sanctions. Provisions of the Discovery Act applicable to each of the discovery methods provide discretionary authority to the Court to impose issue sanctions, evidentiary sanctions, or terminating sanctions for violation of a discovery order. A judge may not grant such relief unless a party disobeys an order compelling discovery.

Terminating Sanctions

Cal. Code of Civ. Proc. § 2023.030(d) provides for terminating sanctions, which include striking pleadings, in part or in whole, staying further proceedings by a party until it disobeys a discovery order, dismissing the action or part of it, and rendering a default judgment. Terminating sanctions are severe because of the drastic effect of their application. They must be used sparingly, and must be supported by an affirmative showing that the party who was ordered to comply with the discovery request had disobeyed the order. Such party must be given an opportunity to be heard regarding their disobedience. *J.W. v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2018) 59 Cal.App.5th 1142, 1166-1171; Cal. Code of Civ. Proc. §§ 2023.030(d), 2030.300(e), etc. Moreover, terminating sanctions are appropriate only when a party’s failure to obey a court order prejudiced the opposing party. *Moofly Prods., LLC v. Favila* (2020) 46 Cal.App.5th 1, 11.

The Court is not convinced that terminating sanctions are appropriate here, given Plaintiff’s representations that she has served verified responses to the outstanding discovery requests. As such, the element of willful failure to obey this Court’s orders is not met.

Issue Sanctions

An issue sanction, as defined in Cal. Code of Civ. Proc. § 2023.030(b) is an order that prohibits a party from supporting or opposing designated claims or defenses. An evidence sanction under Section 2023.030(c) prohibits a party “from introducing designated matters in evidence” To impose such sanctions, the Court must find that there is a (1) failure to comply with a discovery obligation, and (2) the failure must be willful. *Valencia v. Mendoza* (2024) 103 Cal.App.5th 427, 447.

Applied here, Defendant seeks issue sanctions in the form of precluding Plaintiff from presenting at trial any evidence not previously disclosed in discovery responses as follows: Defendant is entitled to issue sanctions in the form of precluding Plaintiff from presenting at trial any evidence not previously disclosed in discovery responses, namely: special interrogatories (set one) and (set two); request for admissions (set one) and (set two); request for admissions of genuineness of documents (set one); request for production (set one) and (set two); form interrogatories (set one) (set two) and (set three); and supplemental interrogatory (set one). Such broad characterization provides the Court with little information about what evidence was not provided by Plaintiffs which Defendant now specifically seeks to exclude from trial, which has not been set.

While Defendant’s Counsel, Valerie Kraml, attaches, in her 115 page Declaration, the discovery which Defendant served, and the responses provided by Plaintiff, she does not articulate which specific discovery responses have and not been provided, and does not summarize what interrogatories, production of documents, or admissions were deficient, which requires exclusion from evidence. This Court does not possess the resource of time to sift through over one hundred pages of discovery requests and responses to discern which discovery responses are deficient, and which evidence must be precluded. It is the responsibility of the moving party, not the Court, to provide the Court with

specific and detailed information supporting its claim that issues should be precluded as a result of the deficient discovery responses. The Court is disappointed that Counsel fails to do that. The Court is aware of the discovery orders that the Court issued in response to the motions recently heard by this Court, and takes judicial notice of those orders.

As such, at this juncture, the Court is not prepared to impose an issue sanction. Accordingly, the Court makes the following orders.

Ruling

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joinder against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court will **reserve** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

(a) Conduct a comprehensive meet and confer session either in person or remotely of such length sufficient to review each discovery request and each discovery response that are purportedly the subject of this Motion and which Defendant believes are not sufficient. Such conference shall not be cursory and should consist of significant and meaningful efforts by Counsel to address all items of outstanding discovery including a serious discussion as to why the information being sought is relevant and calculated to lead to the discovery of admissible evidence that will be of critical importance to this case; this conference shall contemplate the goal of resolving all discovery issues and should include an agreement whereby Plaintiff shall file supplemental responses that satisfy any outstanding issues within a reasonable time.

(b) Prepare a joint statement, signed by both Counsel, providing a status report to the Court communicating the results of the above "meet and confer" session, including a statement that summarizes each of outstanding discovery issues that have not been resolved, the specific and immediate plans to resolve the discovery issues and any outstanding issues which require resolution by the Court; this joint statement should provide the Court with sufficient information to make a decision whether to preclude the subject evidence from being introduced at trial. For the issues jointly resolved, the joint statement shall include proposed orders submitted to the Court that contains a stipulation resolving those issues, including an agreement to provide verified supplemental responses within a time certain;

(c) This joint statement shall be e-filed with the Court no later than May 1, 2026;

(d) The Court reserves the option to refer the resolution of this matter, and all future discovery disputes, to a Discovery Referee.

(e) The Court **continues** this Motion, *sua sponte*, on the reserved issues only to Wednesday, May 20, 2026 at 9:00 a.m.

4. Defendant's request for monetary sanction is **reserved**.

23. 9:01 AM CASE NUMBER: C25-01416

CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. ANA MARIA SANCHEZ

*HEARING ON MOTION FOR DISCOVERY ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED

FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I

TENTATIVE RULING:

Summary

Plaintiff Southwood Financial LLC as Trust Manager for Southwood Financial Trust I's ("Plaintiff" or "Southwood") Motion for Order Deeming Request for Admission to Defendant Ana Maria Sanchez ("Defendant") Admitted and for Monetary Sanctions is **granted**.

Background

In this collections and breach of contract action, Plaintiff alleges that Defendant took out student loans from Sallie Mae Bank to attend Sant Mary's College of California, located in Moraga, California. Defendant allegedly defaulted on this loan. The total amount owed by Defendant to Plaintiff for two outstanding accounts is \$36,630.20. This case is at issue. Defendant was served and filed an Answer and General Denial on June 16, 2025.

On September 30, 2025, Counsel for Plaintiff, Laura M. D'Anna, represents that Defendant was served with Plaintiff's Request for Admissions and Genuineness of Documents, Set One pursuant to Cal. Code of Civ. Proc. § 2033.020, et. seq. Defendant's response was due on October 30, 2025. Counsel represents that Defendant has not served responses, which renders Plaintiff unable to prepare for trial in this case.

Plaintiff filed this Motion for Order Deeming Request for Admission to Defendant Ana Maria Sanchez ("Defendant") Admitted and for Monetary Sanctions in the amount of \$810.00 on November 17, 2025. The Motion is supported by a Declaration of Counsel Laura D'Anna, Memorandum of Points and Authorities and Proposed Order. The Motion was served on November 24, 2026 by mail. No timely opposition was filed by Defendant.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead

to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Request for Admissions

A party may request that another litigant "admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Cal. Code of Civ. Proc. ("CCP") § 2033.010.) Unless the responding party moves promptly for a protective order under section CCP § 2033.080, he or she, within 30 days of service of the RFAs (CCP § 2033.250), shall respond in writing under oath and separately to each RFA (CCP § 2033.210, subd. (a)) and "shall answer the substance of the requested admission, or set forth an objection to the particular request" (id., subd. (b)).

Each response to the RFAs must be "complete and straightforward." (CCP § 2033.220, subd. (a).) The responding party shall admit as much of the request that is true, "either as expressed in the request itself or as reasonably and clearly qualified by the responding party" (id., subd. (b)(1)); "[d]eny so much of the matter involved in the request as is untrue" (id., subd. (b)(2)); or "[s]pecify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge" (id., subd. (b)(3)).

Unless the court determines that the responding party "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section CCP § 2033.220," it must order the RFAs deemed admitted. (Id., subd. (c).) "[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979. The court must also impose monetary sanctions upon the party and/or the attorney for the failure to serve a timely response to the RFAs. (CCP § 2033.280, subd. (c).)

Applied here, Defendant was properly served with a Request for Admissions, but did not file and serve responses as required by the Discovery Act.

Defendant, in *propria persona*, did not file a timely opposition to this Motion

The Court is aware that Defendant is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater

consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Ruling

1. Plaintiff's Motion is **granted**. The Court orders the Request for Admissions Set one Served on Defendant are deemed admitted, including the genuineness of the documents.
2. Plaintiff's request for sanctions is **granted**. Defendant is ordered to pay monetary sanctions in the amount of \$810.00 to Plaintiff's Counsel within thirty (30) days of this order.
3. The Court will execute the proposed order lodged on November 17, 2025 and will attach a copy of this tentative ruling. The clerk of the court is ordered to file and serve a copy of the order to all parties.

24. 9:01 AM CASE NUMBER: C25-00276

CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD

*HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PRODUCTION OF NON-PRIVILEGE LOGS

FILED BY: SEARS, CHRISTOPHER, PHD

TENTATIVE RULING:

Plaintiff Christopher Sears, PhD's Motion for Order compelling Production of Non-Privileged Materials and Privilege Logs pursuant to Cal. Code of Civ. Proc. § 2031.240(c)(1) and for an In Camera Review under Cal. Evid. Code Section 956 is vacated and referred to the Discovery Referee Summer Nastich, Esq.

The Court admonishes Plaintiff and reminds him that any and all discovery motions shall be referred to the Discovery Referee pursuant to the Court's order appointing Discovery Referee filed on September 19, 2025. Discovery motions should not be filed with the Court after referral.

The Court also places Plaintiff on notice of the following statute: Cal. Code of Civ. Proc. §§ 391(b)(2)&(3) and Section 391.7, which state:

Section 391: As used in this title, the following terms have the following meanings:

(a) "Litigation" means any civil action or proceeding, commenced, maintained or pending in any state or federal court.

(b) "Vexatious litigant" means a person who does any of the following:

(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in *propria persona*, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

(3) In any litigation while acting in *propria persona*, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

Section 391.7(a): In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in *propria persona* without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court.

Courtroom Clerk's Session
Add On

25. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the Motions on calendar for Lines 16 and 17. If the tentative rulings for Lines 16 and 17 are uncontested, then the Parties are ordered to appear for a further CMC on September 14, 2026 at 8:30 a.m. in Department 16. The Parties are also further ordered to meet and confer to discuss alternative dispute resolution and shall file a case management conference statement at least five (5) court days before the CMC.

Law & Motion Add ON

26. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION CONT FROM 3/11/2026 PER TR

FILED BY:

TENTATIVE RULING:

This hearing was continued from March 11, 2026. Before the Court is a motion for summary judgment/summary adjudication filed by defendant Acme Builders, Inc. For the reasons set forth, the motion is **denied**.

Background

This case arises out of a collision between an Amtrak train and a motor vehicle in which Plaintiff was a passenger. Plaintiff asserts claims for motor vehicle accident and general negligence against defendants Acme Builders, Inc., Fidencio Garcia who was the driver of the vehicle, and Guillermo Alvarez, the owner of the vehicle. Other relevant facts are addressed below.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil

Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661 *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) (See also Code Civ. Proc. § 437c(c) ["summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact"].) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Procedurally Defective Alternative Motion for Summary Adjudication

Rule 3.1350 of the California Rules of Court provides that "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the cause of action, affirmative defense, claims for damages, or issues of duty **must** be stated specifically **in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.** (Cal. R. Ct. 3.1350(b) [emphasis added].) Rule 3.1350(d) also states: "**The Separate Statement of Undisputed Material Facts in support of a motion must separately identify:** (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. R. Ct. 3.1350(d)(1) [emphasis added].)

Defendant's motion, to the extent it seeks summary adjudication of specific "issues," does not comply with Rule 3.1350. The text of the notice of motion and motion seeks only "summary judgment." (Not. of Mtn. and Mtn. p. 1, ll. 22-25, p. 2, ll. 1-3.) To the extent the grounds listed in the notice of motion and motion for granting summary judgment to defendant are "issues," they are not the same issues stated in the defendant's Separate Statement ("SS") of Undisputed Material Facts ("UMFs"), "repeated, verbatim" from the motion in the SS. (Cal. R. Ct., Rule 3.1350(d)(1) [emphasis added].) Compliance with the provisions of Rule 3.1350(b) and (d) is a matter of due process.

To the extent the motion is an alternative motion for summary adjudication of issues, the motion for summary adjudication is procedurally defective and is **denied** on that ground. (*See Schmidlin v. City of*

Palo Alto (2007) 157 Cal.App.4th 728, 744 [decided under former Cal. Rules of Court, rule 342(b), now Cal. R. Court 3.1350(b)]; *Sequoia Ins. Co. v. Superior Court* (1993) 13 Cal.App.4th 1472, 1478 [notice of motion for summary adjudication must list the disputed causes of action].) The Court will only consider Defendant's motion for summary judgment.

Though the notice of motion and motion seek only summary judgment, the "issue" which comes closest to compliance with Rule 3.1350(d) is Issue 5 regarding workers' compensation barring Plaintiff's claims, which is an affirmative defense that could be summarily adjudicated under Code of Civil Procedure section 437c(f). Even if the Court considered the motion as a motion for summary adjudication of that issue, which is not the relief the notice of motion and motion seek, for the reasons explained below, Plaintiff has raised a triable issue of material fact as to that issue, precluding summary adjudication for defendant on the merits of that defense in any event.

Other Procedural Issues

A. Opposing Party Evidentiary Objections in the Response to the SS

Plaintiff makes evidentiary objections in the Response to the SS as to Issue 1 UMF No. 4 and Issue 2 UMF No. 4. To the extent the objections stated in the Response to those UMFs are directed to the underlying evidence, the evidentiary objections are not filed in a separate document, are not directed to specifically identified items of evidence or exhibits and are not accompanied by a proposed order. (Cal. R. Ct., Rule 3.1354(b) and (c).) The Court does not consider the evidentiary objections in the Response to the SS.

B. Plaintiff's Objection to Reply Separate Statement

Code of Civil Procedure section 437c as amended effective January 1, 2025 states in relevant part, "The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc. § 437c(b)(4) [emphasis added].) Even if Defendant's reply separate statement does not include additional material facts or new evidentiary matter, it includes extensive argument that, if considered, would violate the letter and spirit of the reply page limitations on a summary judgment motion. Further, Code of Civil Procedure section 437c, read as a whole, together with California Rule of Court, Rule 3.1350 do not indicate that argument, rather than facts and evidence, is properly included in a separate statement.

Further, much of the "reply" consists of evidentiary objections either to the contrary facts presented by Plaintiff in response to Defendant's UMFs or to the PAFs, which is also improper both because the factual statements in a separate statement are facts, not evidence, and because the applicable rules prescribe the proper method of presenting objections to evidence submitted in support of or opposition to a summary judgment motion, as explained above. (Cal. R. Ct., Rule 3.1354.) The Court therefore does not consider the reply separate statement.

Plaintiff supported the objection to the reply separate statement with a request for judicial notice of (a) the changes in the text of Code of Civil Procedure section 437c, in particular the addition of text in section 437c(b)(4) quoted in part above (Pl. RJN Exh. A); (b) the results of a Westlaw search for cases construing the new provision (Pl. RJN Exh. B); and (c) a series of unpublished, nonprecedential trial court orders from different trial courts in this state (Pl. RJN Exhs. C-F). The Court **only grants** the

request as to the statutory changes in Code of Civil Procedure section 437c. (Evid. Code § 451(a).)

Analysis

Acme's SS includes 28 UMFs. Plaintiff has filed a response to Acme's SS (titled "Plaintiff's Separate Statement") in which Plaintiff lists 18 UMFs as undisputed, and 10 as disputed. Plaintiff's SS also includes Plaintiff's additional material facts ("PAFs") numbered 29 through 72 which Plaintiff contends also raise triable issues precluding summary judgment. The Court considers the undisputed and disputed facts and PAFs in the context of the legal framework of respondeat superior, the going and coming rule, and its exceptions.

A. Respondeat Superior and the Going and Coming Rule

An employer can be held vicariously liable for torts committed by an employee within the course and scope of his employment under the doctrine of respondeat superior. (*Perez v. Van Groningen & Sons* (1986) 41 Cal.3d 962, 967.) Acme cites *Marez v. Lyft, Inc.* (2020) 48 Cal. App. 5th 569, which in turn describes two lines of decisions with tests for determining whether an employee was acting in the course and scope of his employment such that the employer should be held liable for a tort committed by the employee. (*Id.* at 577.)

The Court in *Marez* explained that one test set forth in *Moreno v. Visser Ranch, Inc.* (2018) 30 Cal.App.5th 568 makes the employer liable " ' if the activities that caused the employee to become an instrument of danger to others were undertaken with the employer's permission and were of some benefit to the employer, or in the absence of proof of benefit, the activities constituted a customary incident of employment.' [Citation omitted.]" (*Id.*) Another from the decision in *Halliburton Energy Services, Inc. v. Dept. of Trans.* (2013) 220 Cal.App.4th 87, "provides 'an employee's conduct is within the scope of his or her employment if (1) the act performed was either required or incident to his duties or (2) the employee's misconduct could be reasonably foreseen by the employer in any event. [Citation omitted.]" (*Id.*) In the *Halliburton* test, " 'foreseeability means that in the context of the particular enterprise, an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among the costs of the employer's business.' [Citation omitted.]" (*Id.*) Generally, whether an employee is acting within the course and scope of his employment is a question of fact. (*Perez, supra*, 41 Cal.3d at 968.)

In employee motor vehicle accident cases, under the umbrella of the respondeat superior doctrine, courts have developed the "going and coming" rule that the employee's ordinary commute to and from work "is ordinarily considered outside the scope of employment," such that the employer is generally not liable for an employee's torts committed during the commute. (*Moreno, supra*, 30 Cal.App.5th at 577; *Lobo v. Tamco* (2010) 182 Cal.App.4th 297, 301 ["[E]mployers are generally exempt from liability for tortious acts committed by employees while on their way to and from work because employees are said to be outside of the course and scope of employment during their daily commute. [Citation omitted.]"].) The going and coming rule thus generally creates a defense for the employer to a claim by a third party for vicarious liability for an employee's accident during the employee's commute. (*Lobo, supra*, 182 Cal.App.4th at 300-301 [employer moved for summary judgment on ground the vehicle accident happened on employee's commute home when he was leaving work, and Court of Appeal assumed employer met its initial burden on the motion].)

"The rationale for the rule is that the employment relationship is suspended from the time the

employee leaves work until he or she returns because an employee ordinarily renders no service to the employer while traveling. [Citation omitted.]" (*Pierson v. Helmerich & Payne Internat. Drilling Co.* (2016) 4 Cal.App.5th 608, 618 [emphasis added].) (See also *Blackman v. Great American First Savings Bank* (1991) 233 Cal.App.3d 598, 602 [same].) The rule applies particularly when the employee regularly performs work at a specific work location, and the job does not involve driving. (*Huntsinger v. Glass Containers Corp.* (1972) 22 Cal.App.3d 803, 809.)

Notably, in another case cited by Acme, *Henderson v. Adia Services* (1986) 182 Cal.App.3d 1069, the Court points out that although workers' compensation cases are often cited in cases involving the going and coming rule and its exceptions, that practice, namely, reliance on workers' compensation cases in going and coming rule cases outside the workers' compensation context, has been questioned by the California Supreme Court as perhaps not legally sound: "As Mr. Witkin points out, however, 'This practice has been questioned, for compensation rules were developed from a distinct social philosophy, with fault eliminated as a test, and liberal construction of the act required.' [Citations omitted.]" (*Henderson, supra*, 182 Cal.App.3d at 1078 [quoting *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, 722].)

The Court in *Pierson, supra*, addressed the different policy considerations in workers' compensation cases and tort cases addressing an employer's respondeat superior liability. "Workers' compensation cases take a more expansive view of the test for the course of employment than tort cases because the policies underlying the workers' compensation statute favor granting employee's coverage. These policies have caused the California Supreme Court to state in a workers' compensation case that 'any reasonable doubt as to the applicability of the going and coming doctrine must be resolved in the employee's favor.' [Citation omitted.] In contrast, the vicarious liability imposed on employers by the respondeat superior doctrine is based on tort policies addressing the allocation of risk and shifting the cost of torts to the community at large. [Citation omitted.]" (*Pierson, supra*, 4 Cal.App.5th at 620 [citing *Hinjoso v. Workmen's Comp. Appeals Bd.* (1972) 8 Cal.3d 150, 155-156 for the expansive view, a case relied on by Acme as discussed below].) (See also *Perez, supra*, 41 Cal.3d at 967 fn. 2.)

B. Exceptions to the "Going and Coming" Rule

The "going and coming" rule is subject to a number of exceptions addressed in the cases cited by the parties, including the "required vehicle" exception, the "incidental benefit exception," and the "special errand" exception which are the focus of the parties' briefing here.

1. Required Vehicle Exception

The "required vehicle" exception generally applies when the employee is required to bring a vehicle to work every day, or at least on the day of the accident, for use on the job. (See *Huntsinger, supra*, 22 Cal. App. 3d at 806, 810 [reversing trial court order granting nonsuit in favor of employer, where employee was required to use his vehicle to perform his job duties, such as making customer calls in the field, and was reimbursed by the company for use of his vehicle].) Courts have rejected the position that an exception to the going and coming rule applies based on the fact employees travel from remote locations to the job site and that the employees organize carpools to commute to and from the work location, even if the employer is aware of the carpool arrangements. (See *Pierson, supra*, 4 Cal.App.5th 608, 633 [carpooling to oil rig site, but facts did not show company ordered or requested employee to carpool with the other employees].)

2. Incidental Benefit Exception

The "incidental benefit" exception applies when the employer obtains an incidental benefit from the employee's vehicle, if the employee makes the vehicle available as an accommodation to the employer or the employer has come to rely on its availability on a regular basis. (*Pierson, supra*, 4 Cal.App.5th at 629 [citing CACI NO. 3725].) "[E]xceptions will be made to the "going and coming" rule where the trip involves an incidental benefit to the employer, not common to commute trips by ordinary members of the work force. The cases also indicate that the fact that the employee receives personal benefits is not determinative when there is also a benefit to the employer. [Citations omitted.]" (*Hinman v. Westinghouse Electric Co.* (1970) 2 Cal.3d 956, 962.) (*See also Halliburton, supra*, 220 Cal.App.4th at 96-97 [in which the Court explained, "When the employer incidentally benefits from the employee's commute, that commute may become part of the employee's workday for the purposes of respondeat superior liability," but did not need to decide if the incidental benefit exception applied to the employee's use of the company truck to commute because the accident occurred while the employee was on purely personal business over 100 miles from the work site]; *Lobo, supra*, 182 Cal.App.4th at 301 [stating the "key inquiry" in the "required vehicle" exception is whether there is an "incidental benefit" for the employer, describing the test as whether "the use of a personally owned vehicle is either an express or implied condition of employment" or the employee has "agreed, expressly or impliedly," to make the vehicle available as an accommodation to the employer" and the employer has come to rely on its availability].)

However, in *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, cited by Acme, the Court upheld a jury verdict that an employer was not liable for an employee's motor vehicle accident which occurred during the employee's trip home from work based on the "going and coming" rule. The Court held none of the exceptions applied, even though the employee occasionally ran errands for the employer using her car and transported certain work equipment voluntarily, in part because transporting the equipment was for the employee's personal benefit and storage was available for the equipment at the employer's garages. (*Id.* at 723.)

3. Special Errand Exception

The Court in *Pierson, supra*, explained the factual elements of the special errand exception: "Under the special errand exception, an employee is considered within the scope of employment while coming from home or returning to it, while on a special errand either as part of his regular duties or at a specific order or request of the employer. [Citations omitted.] An example of a special errand is the delivery of mail to a post office on the way home from work. [Citation omitted.]" (*Pierson, supra*, 4 Cal.App.5th at 632.)

C. Defendant's Material Facts as to Which Plaintiff Concedes There Is No Dispute

It is undisputed that on the morning of the accident, defendant Garcia drove his tenant's/friend's (defendant Alvarez's) Ford Expedition vehicle to pick up Plaintiff from Plaintiff's house. (UMF 1.) Garcia had never picked up Plaintiff in Alvarez's Ford before. (UMF 26.) Alvarez has never worked for Acme. (UMF 5.)

Plaintiff began working seasonally for Acme in 2017. (UMF 6.) Plaintiff worked for Acme from February to April 2021, not in May or June 2021, and began working for Acme again in July 2021 until August 9, 2021, the date of the accident. (UMF 8, 9.) In 2021, when he was working for Acme, he

worked three to four days a week. (UMF 12.) Prior to the accident, Acme had been evicted from the warehouse and office space located in Oakland. (UMF 16.) After the eviction, one container with Acme tools and materials was moved to Garcia's property. (UMF 18.) Garcia's truck typically carried Garcia's tools in toolboxes in the rear of the truck and on the sides, and Garcia carried the tools even when he did not intend on using them. (UMF 25.)

On the day of the accident, Garcia and Plaintiff were scheduled to work on the roof at the home of Paul Peczon, the owner of Acme. (UMF 10.) They had been working on the roof for several days prior to the date of the accident. (UMF 15.) The accident happened a few blocks from Garcia's home after Garcia picked up Plaintiff when they were driving back to Garcia's residence. (UMF 7.)

Paul Peczon, Acme's CEO, currently works by himself and does not have a truck to haul materials, as he has everything delivered. (UMF 21.) At the time of the accident, Acme had workers compensation insurance, and Paul Peczon cooperated with his insurance agents regarding workers compensation claims for Plaintiff. (UMF 23, 24.)

D. Defendant's Material Facts Which Plaintiff Contends Are Disputed

UMF Nos. 2, 3, 4, 11, 13, 14, 17, 19, 20, and 22 are listed by Plaintiff as disputed. The Court finds that Plaintiff has not genuinely disputed the facts stated in UMF Nos. 4, 14, and 17. Plaintiff's response to those UMFs and the supporting evidence Plaintiff cites include new or additional facts but do not directly dispute the fact as specifically stated in the UMF. Plaintiff, however, has raised genuine factual disputes as to the other UMFs listed as disputed.

For example, Acme asserts that in 2021, Garcia drove Plaintiff to work "as a favor," that he was not required to drive him, and that Plaintiff's brother Javier Martinez sometimes drove Plaintiff to work. (UMF 2, 3.) In response, Plaintiff has presented evidence disputing those facts which shows that Plaintiff did not drive himself to work for Acme, does not have a car, and does not have a driver's license, that on any day when he worked in 2021 he was driven to work by Garcia, and that his brother Martinez no longer worked for Acme in 2021. (Resp. to UMF 2, 3.) The evidence supports the inference that Garcia may have had to take Plaintiff to work if Garcia needed Plaintiff's help with the job because in 2021 Plaintiff could not get to the job site without Garcia driving him.

Plaintiff has also genuinely disputed UMF 11 that Garcia could have done the roofing job on Acme's owner's house, the job they were scheduled to do on the date of the accident, without Plaintiff's help. (Resp. to UMF 11.) Plaintiff has genuinely contested that even if Plaintiff was not a "carpenter," Garcia testified that he needed Plaintiff's help on the roofing job. (Resp. to UMF 11.) The fact that Plaintiff was an "assistant" rather than a "carpenter" is also genuinely contested by Acme's filing with the Employment Development Department in which it listed Plaintiff's job as "carpenter." (Resp. to UMF 11.)

Plaintiff has raised a genuine dispute regarding UMF 13, which states that the owner of Acme "never" required workers to pick up tools or materials for a project on the way to work. The Peczon testimony at deposition indicates that Garcia indeed "sometimes" stopped to pick up materials for a job on his way to work, which clearly disputes that this "never" occurred. (Resp. to UMF 13, citing in part Peczon DT p. 20, ll. 1-3 and 14-18.) While Peczon disputes this occurred "regularly," he testified this might occur twice a month and that he instructed Garcia to clock in if he picked up materials on his way to work. (UMF No. 13, citing in part Peczon DT p. 20, ll. 1-13.) The inference that Garcia may have had to

use his truck to pick up materials is also supported by an inference from Peczon's deposition testimony confirming that Garcia was given a company credit card which he could use to pay for gas for his vehicle. (Resp. to UMF 13, citing Peczon DT p. 43, l. 25 – p. 44, l. 25.)

For similar reasons, the Court finds Plaintiff has raised a genuine dispute as to UMF 20 and 22. Acme's position is that Garcia was not required to use his truck or pick up materials and only volunteered to use it to pick up materials on his way to work. There are reasonable, conflicting inferences that can be drawn from the evidence cited by Plaintiff that when needed materials were not on site, Garcia had to pick up those materials using his own vehicle for which Acme provided compensation, both by allowing Garcia use of a credit card to pay for gas for his vehicle and Peczon wanting Garcia to clock in so that his time would be compensated if he picked up materials on his way to work. (Resp. to UMF 20, 22.)

Plaintiff has also genuinely disputed UMF 19 by raising a factual dispute as to whether the tools needed to do the roofing work on Acme's CEO's house on the date of the accident were stored and located at Garcia's house and had to be picked up for Garcia and Plaintiff to do the job that day. (Resp. to UMF 19, citing Garcia DT pp. 163, l. 3 – 165, l. 25.) The fact that Acme stored the company tools at Garcia's house alone supports an inference that Acme had come to rely on Garcia's use of his vehicle for the benefit of the company to transport tools and materials stored there to the job site, that Garcia was not merely voluntarily transporting tools in his vehicle, that he was being paid at a minimum for gas for his vehicle based on the benefit of the use of his vehicle for Acme, and that an exception to the going and coming rule may apply.

If a party opposing a motion for summary judgment or summary adjudication raises a genuine factual dispute regarding any of the undisputed facts offered by the moving party material to the disposition of the cause of action or issue, that party has raised a triable issue as to that fact, and the Court may deny the motion. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521 [inclusion of specific undisputed facts in the moving party's separate statement concedes the facts are material, and the moving party cannot then deem those same facts immaterial when they are disputed by the opposing party].)

E. Plaintiff's Additional Material Facts

The Court finds Plaintiff's genuine disputes of the material facts cited above raise triable issues. That Plaintiff has raised a triable issue of fact precluding summary judgment is bolstered by the PAFs and supporting evidence.

Plaintiff has presented evidence that as of August 2021 when the accident occurred, Acme's offices were located at the home of Paul Peczon, Acme's sole owner, the location where the roofing work was to be performed on the date of the accident. (PAF 32, 72; *see also* Pl. Exh. 1A [Peczon DT 11:14-16], Def. Exh. 2 [Peczon Decl. ¶ 1].) Garcia used his personal vehicles to pick up materials and supplies to take to the job sites, to travel between job sites, to supervise work, to make pickups at hardware and supply stores, and to drop off time sheets and work logs at the Acme office, and he needed to have a personal vehicle at work to do so. (PAF 36, 65-69.) Acme knew about Garcia using his personal vehicle and relied on Garcia making the vehicle available during the workday. (PAF 45.)

Plaintiff and Garcia were the only construction worker employees working outside the office for Acme

in July and August 2021, and Garcia was the only supervisor. (PAF 39, 43, 47, 51, 64; *see also* Pl. Exh. 1A [Peczon DT 16:19-25].) In summer 2021, Garcia informed Paul Peczon that there were jobs where Garcia needed a helper and that he wanted Plaintiff to be his helper, though they knew Plaintiff did not drive, did not have a car, and would need to be transported to and from the job sites. (PAF 47-49.) Garcia would pick Plaintiff up from Plaintiff's house and take them to the job site, but one or two days a week, after Garcia picked Plaintiff up, they would go back to Garcia's house to pick up tools or heavy materials and then go to the job site. (PAF 54, 55, 57.) Garcia's house where the tools were stored was considered the "shop" after Acme was evicted from its storage facility. (PAF 33, 46, 53.) Acme gave Garcia a company credit card to buy and transport materials and tools, and to put gas in his vehicles for years. (PAF 44.)

The roofing job Plaintiff were scheduled to do on the day of accident began in late July and early August 2021 and was at Paul Peczon's house, which is also the location of Acme's office. (PAF 58-61, 72.) On the day of the accident, Garcia picked Plaintiff up and they were on their way back to the "shop" to pick up materials and load them into Garcia's truck when the accident occurred. (PAF 57-61.)

F. Application of the Legal Framework to the Undisputed and Disputed Facts

Defendants argue that the issues on the motion are bilateral – either the accident did not occur in the course and scope of employment of both Plaintiff and Garcia and Acme is not liable, or if the accident did occur in the course and scope of employment of both Plaintiff and Garcia, then the workers' compensation exclusivity rule applies, and Plaintiff's only remedy is to pursue relief through workers' compensation insurance. Acme's reply similarly asserts that the Court has to accept as true either that when the accident occurred, Plaintiff and Garcia were on their own time because they were driving back to Garcia's house to switch vehicles and drive to work, or that they were both in the scope of their employment because they were driving back to Garcia's house to switch vehicles and load tools and then commute to work such that Plaintiff's injury in the accident was linked "in some causal fashion" to his employment with Acme and his remedy is worker's compensation. (Reply, p. 1, ll.10-21.)

There is another alternative. The other alternative is that Plaintiff was not acting within the course and scope of his employment, as he was merely a passenger getting a ride to work from Garcia, but that Garcia was acting within the course and scope of his employment as supervisor picking up and taking his helper, who he needed to assist on the roofing job and had no other means of transportation, to get his helper, as well as the tools from Garcia's house, to the work site. getting to the job site, while making a stop to pick up Acme's tools from Garcia's house needed for the roofing job that day and then proceeding to the job site, such that an exception to the "going and coming" rule applies which brings Garcia's trip with Plaintiff within the scope of employer liability under the respondeat superior doctrine.

1. Genuine Disputes Raised as to Defendant's UMFs in Support of the Motion

In Section B.i. of Acme's supporting memorandum, Acme argues that Garcia did not undertake to pick up Plaintiff with Acme's permission and that Garcia's activity did not constitute a customary incident of his employment with Acme. The key material facts Acme cites in support of this argument, in particular UMFs 2, 3, and 11, are disputed by contrary evidence offered in the opposition as well as by

a number of PAFs as summarized above. (See also PAF 47-49.) Further, in 2021, Garcia was Plaintiff's sole means of transportation to the work sites where he was assisting Garcia, every day that Plaintiff worked for Acme in 2021 as Garcia's assistant, Garcia picked Plaintiff up and transported him to work, Plaintiff was the only other construction worker at Acme with Garcia in 2021 when the accident happened, and Garcia needed Plaintiff's assistance with the work for Acme, including the roofing job scheduled that day. (Resp. to UMF 2, 3, 11; PAF 47-49.) (See also Pl. Exh. 1C [Garcia DT 24:20-24] Plaintiff has also raised factual disputes as to whether after picking up Plaintiff had to pick up tools stored at his house that were necessary for the roofing work to be performed on Peczon's house that day. (Resp. to UMF 13, 19, 20, 22.) (See also PAFs 33, 46, 53-55, 57-61.) (See also Pl. Exh. 1C [Garcia DT 163:3-165-25, 167:16-25].)

These disputed facts also raise triable issues as to whether Garcia using a personal vehicle to pick up Plaintiff and transport him to work, as well as to pick up tools and materials stored at Garcia's property on his way to the job site and to pick up materials and tools elsewhere, was required for Garcia's job as supervisor, or was at least a substantial incidental benefit to Acme on which Acme relied. (*Compare* Acme Argument B.ii. to Resp. to UMF 2, 3, 11, 13, 19, 20, 22.) (See also PAFs 36, 65-69; see also Pl. Exh. 1A [Peczon DT 18:11-13 (Garcia's job as supervisor was to supervise multiple job sites), DT 20:1-21:11 (picking up materials in his truck happened twice a month and was part of Garcia's job, *but see* Pl. Exh. 1C [Garcia DT 96:1—16 [Garcia picked up materials in his truck two to three times a week paid for on the company credit card and put gas in his truck with the company credit card one to two times a month, of the four times per month he filled up), DT 22:3-10 (travel to multiple job sites), DT 159:19-161:2 [Garcia sometimes used his heavy duty truck to pick up gravel, and sometimes before work]; Pl. Exh. 1B [Iniguez DT 74:19-23 [between 2017 and 2021 Garcia and Iniguez many times stopped at locations other than the warehouse and Garcia's house to pick up tools and materials, such as Home Depot]].) Plaintiff's evidence raises a triable issue of fact that on the day of the accident, Garcia needed to pick up and transport Plaintiff to the job site, stopping at Garcia's house for tools stored on his property for Acme, in order for Garcia to be able to do the roofing work. (PAF 47-49; see also Pl. Exh. 1A [Peczon DT 65:14-23, 67:23-68:21, 69:3-9 [Garcia contacted Iniguez to come back to work because Garcia needed him]; PAF 54, 55, 57 [see also Pl. Exh. 1B [Iniguez DT 64:14-65:11]]; PAF 33, 46, 53; see also Pl. Exh. 1B [Iniguez DT 28:11-23 (shop at Garcia's where they stored materials and "tools that were the boss's")].)

Though Acme argues they were not driving to the job site when the accident happened, the evidence supports an inference they were going to Garcia's house to pick up his truck and work tools stored at Garcia's residence that they needed to perform the roofing job at the Peczon property. (PAF 57-61, 72 and evidence cited above.) There are reasonable, conflicting inferences to be drawn from the evidence regarding whether Garcia was merely on a "pre-work errand/favor" to Plaintiff or whether he was engaged in a necessary work errand by transporting Plaintiff and picking up tools to perform the roofing work when the accident occurred. The reasonable, conflicting inferences preclude the Court from granting summary judgment; the issue must be decided by the trier of fact. (Code Civ. Proc. § 437c(c); *Husman, supra*, 12 Cal.App.5th at 1180; *Cohen, supra*, 159 Cal.App.4th at 1497.)

The Court also finds the disputed material facts distinguishable from *Ducey* cited by Acme. Unlike in *Ducey*, there is at least a reasonable inference that Acme's roofing work tools were being stored at Garcia's residence not as a mere convenience but because there was no other storage location

available after Acme's was evicted from its prior storage facility. There is also a reasonable inference the work tools needed for the roofing work Garcia and Plaintiff were going to perform that day were necessary for the job; as a practical matter, both Plaintiff and the tools had to be picked up and transported to the job site to perform the work that was to be done that day, and picking up Plaintiff and stopping at Garcia's residence was the first part of the trip to the work site.

2. Cases Relied on by Acme Are Distinguishable

The Court finds distinguishable *Smith v. Workmen's Compensation Appeals Board* (1968) 69 Cal.2d 814 and *Pierson, supra*, relied on by Acme. *Smith*, a workers' compensation decision, held that the going and coming rule did not bar the decedent employee's spouse from recovering workers' compensation death benefits, where the employee was a social worker who was required by the employer to furnish his own vehicle to perform his job functions. The employee was injured on his way home from work. Neither party contends Plaintiff Iniguez was required to have a vehicle to perform his job here.

The analysis is different for Garcia. There are at least triable issues raised by Plaintiff as to whether Garcia was acting in the scope of his employment with Acme when the accident occurred. The disputed facts which raise triable issues are that (a) Garcia, as a supervisor, needed an assistant to perform his work including specifically the roofing job the day of the accident, (b) during the applicable time frame Plaintiff was the only Acme worker/employee, (c) Garcia had to provide Plaintiff transportation to the job site so that Plaintiff could assist him on the roofing job, as Plaintiff did not drive, had no car, and Plaintiff's brother no longer worked for Acme or provided Plaintiff work transportation in 2021, (d) Garcia was storing Acme's equipment needed for the roofing job at Garcia's home since Acme lost its storage unit, (e) the equipment at Garcia's house was needed for the roofing job and had to be transported by Garcia to the job site that day by using Garcia's vehicle, (f) Garcia was given a company credit card to use for material and tool purchases and to pay for gas for Garcia's vehicle, and (g) as admitted by Acme's owner, Garcia twice a month had to use his truck to pick up materials for jobs for Acme (or more frequently based on other deposition testimony. (Resp. to UMF 2, 3, 11, 13, 19, 20, 22 and PAF 32, 33, 36, 39, 43, 44, 47-49, 51, 53-55, 57-61, 64-69.) These facts raise triable issues as to whether Garcia was within the scope of his employment when the accident occurred under the "required vehicle," "incidental benefit" or "special errand" exceptions.

Pierson, supra, relied on by Acme is also distinguishable. The case involved oil rig workers who, among themselves, made carpooling or ridesharing arrangements to reach the rig sites. The Court noted that two other published decisions had affirmed summary judgment for the employer in cases addressing the relationship between carpooling and scope of employment. (*Pierson, supra*, 4 Cal.App.5th at 623.) In this case, it is not clear to the Court, or at least there may be a triable issue, as to whether Plaintiff and Garcia were "carpooling," as opposed to Garcia, as part of his job duties as supervisor, transporting an essential worker, along with necessary work tools, to the job site though they did not reach the location to pick up the tools before the accident occurred. For carpooling and scope of employment, *Pierson* identifies five factors to consider, including "(1) the role played by the employer in any carpooling arrangements; (2) payments by the employer to its employees for the time or expenses incurred in commuting to the jobsite; (3) employer control over the commute; (4) the location of the accident compared to the route the driver would have taken if not transporting other

employees; and (5) any incidental benefits accruing to the employer as a result of the employees' carpooling arrangements. For example, the first factor is addressed by evidence showing whether the employer requires employee carpooling, merely encourages it, or takes a neutral approach. [Citations omitted.]" (*Id.* at 624.) There are triable issues regarding the factors identified in *Pierson*, even if this case is considered one involving carpooling, as there are disputed inferences that may be drawn from the facts, including Garcia's supervisor status and Plaintiff's status as the only remaining Acme worker to assist Garcia, Garcia's use of a company credit card to pay for gas or other items, Garcia's storage and transportation of Acme's tools to the job site and the incidental benefit derived by Acme from Garcia's use of his vehicle for those purposes.

In *Henderson, supra*, 182 Cal.App.3d 1069, cited by Acme, the plaintiff was involved in a motor vehicle accident caused by a person employed by a temporary staffing agency when the employee was on route to his temporary job site. The Court affirmed a summary judgment for the employer staffing agency, finding that the trip by the temporary employee to his temporary worksite did not provide an "incidental benefit" to the employer outside the ordinary commute of ordinary members of the workforce. (*Id.* at 1076.) The temporary employee in that case was merely commuting from his home to his temporary work location, and the Court noted that the employer did not pay the employee for travel expenses or compensate him for travel time. (*Id.*) Plaintiff is in a similar position to the temporary employee in *Henderson*, but Garcia is not. Indeed, the *Henderson* decision states that "[a]ctivities which have been considered special errands include 'picking up or returning tools used on the job. . . . [Citation omitted.]'" (*Henderson, supra*, 182 Cal.App.3d at 1077.) Garcia picking up Plaintiff was akin to Garcia picking up another item of equipment or tool needed to perform the job that day.

In its reply, Acme relies primarily on a workers' compensation case, *Hinjoso v. Workmen's Comp. App. Bd.* (1972) 8 Cal.3d 150, which it argues is on point. That case, however, is factually distinguishable in legally significant ways. In particular, the facts as summarized by the Court indicated that the plaintiff worked a nine to nine and a half hour workdays as a farm laborer whose work required him to work on noncontiguous fields. (*Id.* at 152.) Workers were "required to provide their own private vehicles between the fields." (*Id.* at 152 and fn. 1.) He was compensated for the time in which he was transported from one field to the next during the course of the workday (*id.* at 152), and he needed vehicle transportation during the workday as a condition of the job "for the variable inter-ranch transit necessary to perform the day's work." (*Id.* at 152.) To meet his obligation to provide vehicle transportation for himself between fields, he made an agreement with his coworker to transport him both to and from work, and between the farms during the day, and he paid his coworker to share the operating costs of the coworker's vehicle. (*Id.* at 153.) The accident in that case occurred while the plaintiff's coworker was transporting him home from work as a passenger in his coworker's vehicle. (*Id.*)

The Court in *Hinjoso* emphasized that, in the worker's compensation context, "the courts have held non-compensable the injury that occurs enroute to a fixed place of business at fixed hours in the absence of special or extraordinary circumstances." The general rule thus "exclude[s] the ordinary, local commute that marks the daily transit of the mass of workers to and from their jobs" as compensable as subject to the going and coming rule but excepts from that rule "extraordinary transits that vary from the norm because the employer requires a special, different transit, means of transit, or use of a car, for some particular reason of his own." (*Id.* at 157.) The Court stated, "Two co-

employees, injured in the same accident and under identical employment circumstances, cannot logically be treated differently under the workmen's compensation law merely because one is the legal owner of, and the other a passenger in, the vehicle involved in the accident. [Citations omitted.]" (*Id.* at 162 [emphasis added].) Notably, the Court in *Hinjoso* recognized that in the context of industrial accidents, where there are many varying circumstances, each case must be considered " 'by the facts which are peculiarly its own.' " (*Id.* at 155.)

In this case, Plaintiff and Garcia, though driving in the same vehicle and involved in the same accident, were not "under identical employment circumstances." (*Id.* at 162.) There are at least triable issues of material fact that Garcia, as supervisor, had different job duties and requirements which included Garcia picking up and transporting his assistant (Plaintiff), picking up and transporting tools, and picking up materials for Acme. Unlike the passenger in *Hinjoso*, there is no evidence offered or contention by Acme that Plaintiff was required to have a vehicle as a condition for his job, or that Plaintiff was paying Garcia to provide his transportation to work. To the contrary, there is evidence that some of the costs of Garcia's vehicle were being paid by Acme, including gas.

The undisputed fact that Garcia was driving his tenant's vehicle when he picked up Garcia, because his truck was blocked by that vehicle when he went to pick up Garcia, is arguably a unique fact not found in the decisions cited by the parties. The significant issues as the Court perceives it under the case law are the purpose of the trip, whether picking up Plaintiff was a special errand or otherwise necessary for Garcia and Plaintiff to do the job assignment that day, whether Garcia generally was required to have a vehicle for his job responsibilities for Acme, expressly or impliedly, with those job responsibilities including giving a ride to Plaintiff to work each day Plaintiff worked, and whether Acme received a substantial incidental benefit from Garcia using his personal vehicle for work purposes, including transporting Plaintiff and work tools stored at Garcia's residence given that Garcia required a helper to do the job, Plaintiff was the only construction worker employee of Acme at the time, Garcia regularly picked Plaintiff up and transported him to get tools and materials and to the job site, and Plaintiff could not work and get to the job site without Garcia picking him up and driving him.

The evidence supports an inference that Plaintiff was in a sense another essential tool for Garcia to perform the roofing job scheduled that day, and that Garcia as supervisor as part of his job responsibilities was picking up and transporting what was necessary for him to do the roofing job that day when the accident occurred. The fact that Garcia borrowed a car to pick up Plaintiff rather than using his own truck does not change the purpose of Garcia's trip and its role in Garcia's employment for Acme and the specific roofing job that day. If there is sufficient evidence to support that the required vehicle, incidental benefit, or special errand exceptions may apply if they were in Garcia's truck rather than the borrowed vehicle, it is not clear to the Court that the use of the borrowed vehicle (or a rental vehicle) would make the exceptions inapplicable, nor has Acme cited case authority to that effect. At most, the fact that Garcia was driving an alternate vehicle rather than his truck in picking up Plaintiff on the way to getting the tools and then heading to the job site is a fact subject to conflicting reasonable inferences for a trier of fact to consider, specifically, whether Garcia was just doing a favor and picking Plaintiff up that morning, or was just using an alternative vehicle to perform his job functions within the required vehicle, special errand, or incidental benefit exceptions. Conflicting, reasonable inferences from this undisputed fact precludes the Court from granting summary judgment. (Code Civ. Proc. § 437c(c); *Husman, supra*, 12 Cal.App.5th at 1180; *Cohen, supra*,

159 Cal.App.4th at 1497.)

G. Alternative Workers Compensation Exclusivity Rule Theory/Defense

Acme argues that if Plaintiff was acting within the course and scope of his employment when the accident occurred, then his exclusive remedy for his injuries is in workers' compensation insurance. (Lab. Code § 3600 *et seq.*; *Wright v. State of California* (2015) 233 Cal. App. 4th 1218, 1229 [sating, "California's Workers' Compensation Act (Lab. Code, § 3600 *et seq.*) provides an employee's exclusive remedy against his or her employer for injuries arising out of and in the course of employment," but concluding there were factual disputes as to whether the employee in that case was in the course and scope of his employment when he was injured].) Plaintiff offers the additional fact, with a supporting Acme verified response to Request for Admission No. 2, that Acme has admitted Plaintiff was not in the course and scope of his employment when the accident occurred. (PAF 29 and Pl. Exh. 1F.)

Acme in its reply tries to argue that the admission should not be accepted as an admission for various reasons. At a minimum, if the admission does not conclusively foreclose Acme's argument or fully bind Acme to the legal implications of Acme's statement that it "admit[s]" that Plaintiff was "not acting within the course and scope of his employment for Acme" when the accident occurred, the discovery response creates a triable issue on that point, precluding summary judgment for Acme on that ground.

Defendant's Evidentiary Objections to Plaintiff's Opposition Evidence

Defendant objects to two exhibits filed in support of Plaintiff's opposition, specifically Exhibit 1D and 1G, each of which are declared to be true copies of documents produced by Acme identified with a specific series of bates-stamp numbers in the Mastrangelo Declaration. (Mastrangelo Decl. ¶¶ 5, 8.) The Court rules only on evidentiary objections material to the determination of the motion. (Code Civ. Proc. § 437c(q).)

The objection to Exhibit 1D is **overruled**. The Mastrangelo Declaration lays an adequate foundation as to the authenticity of the document (i.e., that they are what they purport to be on their face, see Evid. Code §§ 1400, 1410; *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 337-338, rev. den. by *Hooked Media Group v. Apple Inc.* (Dec. 30, 2020) 2020 Cal. LEXIS 8983.) The EDD form on its face is a document submitted to the EDD by Acme and signed by Acme's president and is relevant and admissible for a nonhearsay purpose as reflecting Acme's characterization of Plaintiff's position (carpenter) which disputes one of Acme's UMFs or even if offered for the truth that Plaintiff was employed as a carpenter, admissible under an exception to the hearsay rule. (Evid. Code § 1220 [admission of party opponent].)